REQUEST FOR PROPOSAL (RFP)

(RFP No: 03/IT/Call Center/2024-25)

FOR

Appointment of an Agency/ firm for Operation & Management of Single Window Call Center Services at Centralized Call Center and Bijli Suvidha Kendra (BSK) in DHBVNL.

Single Stage – Double Envelope Selection Procedure

The last date for submission of RFP is 02.12.2024 (Up to 11:00 Hrs.)

Chief Engineer/IT,
DHBVNL,
Vidyut Sadan, Vidyut Nagar,
HISAR – 125005.
E-mail:- cto@dhbvn.org.in

Superintending Engineer/IT,
DHBVNL,
Vidyut Sadan, Vidyut Nagar,
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DHBVNL

DAKSHIN HARYANA BIJLI VITRAN NIGAM

(A Govt. of Haryana Undertaking)

NOTICE INVITING TENDERS

(Through e-tendering)

E-tender is invited in two parts (Part-I, Technical Bid & Part-II, Price Bid), from the firms, by the Chief Engineer/IT, DHBVNL, Hisar as per following details:

NIT No./ date	Brief Scope of work	Earnest Money deposit (In Rs.)	Tender documents Fees including GST (Non-refundable) (In Rs.)	E-Service Fee including GST (Non-refundable) (In Rs.)
03/IT/Call Center/2024-25 dated 08.11.2024	Engagement of an Agency/firm for operation & management of Single Window Call Center Services at Centralized Call Center and Bijli Suvidha Kendra (BSK) in DHBVNL.	Rs 10 Lakhs	5900/-	1180/-

Sr. No.	Date of Starting of e-Tender for submission of online Techno-Commercial Bid and price Bid at https://etenders.hry.nic.in	Pre-bid Meeting	Date of closing of online e- tender for submission of Techno-Commercial Bid & Price Bid on web portal	Opening date of part-1 of proposal on web portal
1	08.11.2024 (from 11:00 Hrs.)	Place: Vidyut Sadan, Hisar. Date: 15.11.2024 (at 11:00 Hrs)	02.12.2024 (upto11:00 Hrs.)	04.12.2024 (at 15:00 Hrs.)

1) Only those tenders will be considered who fulfill the **Pre-Qualification Conditions** mentioned in the tender documents.
2) Only those tenders shall be considered who deposit the earnest money and tender cost & E-Service Fee by due date.
3. Information Regarding Payment of e-service fees, Tender Document fee & EMD Fee.

i. The Bidders can download the tender documents from the Portal: https://etenders.hry.nic.in. The Bidders shall have to pay for the e-service fees, Tender documents & EMD fees online by using the service of secure electronic payment gateway. The secure electronic payments gateway is an online interface between suppliers and online payment authorization networks. The Payment for Tender Document Fee and eService Fee can be made by eligible bidders/ suppliers online directly through Debit Cards & Internet Banking Accounts and the Payment for EMD can be made online directly through RTGS / NEFT.

ii. If the tenders are cancelled or recalled on any grounds, the e-service fees & tender document fees will not be refunded to the agency.

iii. The detailed procedure/instructions to bidder on Electronic Tendering System are mentioned against clause no.36 of ITB section-II.

iv. **For any clarification regarding bid preparation and bid submission, please contact:**
O/o. DS&D Haryana, SCO – 09, IInd Floor, Sector – 16, Panchkula – 134108
E - mail: Support-eproc@nic.in

The Tenderers can submit their tender documents (Online) as per the dates mentioned above. Corrigendum, if any would be published online on the website.

Chief Engineer/IT,
DHBVNL, Hisar.

SECTION -1 INSTRUCTION TO BIDDER

DHBVNL

DHBVN

INSTRUCTIONS TO BIDDERS

Introduction

The power sector reforms in the state of Haryana were initiated by the Government of Haryana (GoH) under the Haryana Reforms Act 1998 on 10th March 1998. The Haryana Electricity Regulatory Commission (HERC) was formed on 16th August 1998 and the Haryana State Electricity Board (HSEB) was unbundled in to two independent company's viz. Haryana Power Generation Corporation Limited (HPGCL), to undertake generation of electricity, and Haryana Vidyut Prasaran Nigam Limited (HVPNL) to undertake transmission, distribution and retail supply of electricity in the state of Haryana.

Subsequently in July 1999, two distribution companies viz. Uttar Haryana BijliVitran Nigam Ltd. (UHBVNL) and Dakshin Haryana Bijli Vitran Nigam Ltd. (DHBVNL) were separated from HVPNL to exclusively undertake function of distribution and retail supply of electricity in their respective geographic areas.

Electricity Sector organizations in Haryana

HERC	Haryana Electricity Regulatory Commission	http://www.herc.nic.in
HPGCL	Haryana Power Generation Corporation Limited	http://hpgcl.gov.in
HVPNL	Haryana Vidyut Prasaran Nigam Limited	http://www.hvpn.gov.in
DHBVNL	Dakshin Haryana BijliVitran Nigam Ltd	http://www.dhbvn.org.in
UHBVNL	Uttar Haryana BijliVitran Nigam Ltd	http://www.uhbvn.org.in

Company Profile

No. of field Offices

	Name of Circle	Circle	No. of Divisions	No. of Sub-division
1	Bhiwani	1	3	17
2	Faridabad	1	4	24
3	Fatehabad OP Circle	1	2	11
4	GURUGRAM CIRCLE-1	1	2	14
5	GURUGRAM CIRCLE-2	1	2	11
6	Hisar OP Circle	1	3	17
7	Jind	1	3	12
8	Narnaul	1	2	10
9	Palwal	1	1	13
10.	Rewari Circle	1	3	12
11.	Sirsa (OP) Circle	1	3	15
TOTAL		**11**	**28**	**156**

DHBVNL

Category wise number of consumers in DHBVNL

Circle	AGRI	AGRO	BLDS	BULK	DS	HT	IHDL	LIIR	LT	NDS	PWW	RAIL	STRT	Grand Total
Bhiwani Circle	46078	94		24	335692	848		107	2019	36204	1432		145	**422643**
Faridabad Circle	9527	18	75	18	518456	2324		1	21447	61721	2365	2	335	**616289**
Fatehabad OP Circle	41924	117	2	2	214426	453		1	2108	27170	570	1	56	**286830**
GURUGRAM CIRCLE-1	12279	40	96	9	219957	1748		3	5428	33576	822		255	**274213**
GURUGRAM CIRCLE-2	15817	52	239	19	285690	904	8		2437	39198	1328	3	390	**346085**
Hisar OP Circle	21171	255	10	40	356624	486		4	2894	46408	715		404	**429011**
Jind	46265	59	3	17	257860	353		20	2045	28405	774		119	**335920**
Narnaul Circle	32533	67	1	13	200711	199		7	852	21564	1873		103	**257923**
Palwal Circle	20408	46	2	9	305680	407		3	2020	28298	1651		49	**358573**
Rewari Circle	32869	47	26	2	234236	518		8	1690	27044	955		159	**297554**
Sirsa (OP) Circle	64129	320	5	19	276017	278		3	3657	39765	857		205	**385255**
Grand Total	**343000**	**1115**	**459**	**172**	**3205349**	**8518**	**8**	**157**	**46597**	**389353**	**13342**	**6**	**2220**	**4010296**

Category Definition: -

i) AGRI – Agriculture.
ii) AGRO – Farmer Producer Organization.
iii) BLDS – Bulk Domestic.
iv) Bulk – Bulk Supply.
v) DS – Domestic Supply.
vi) HT – High Tension Industrial.
vii) IHDL – Independent Hording and Decorative Lightening.
viii) LIIR – Lift Irrigation.
ix) LT – Low Tension Industrial.
x) NDS – Non-Domestic Supply.
xi) PWW – Public water works.

DHBVNL

xii) RAIL – Railways.

xiii) STRT – Street Light.

Note: Due to organizational restructuring the profile of DHBVNL may changes during the contract. Simultaneously the consumer mix in the designated areas may also grow at 7.5% CAGR in DHBVNL.

1 SCOPE OF WORK

a. The selected Business Associate (BA)/ Call Center Agency is required to provide End-To-End Call Center Services to the customers of DHBVNL.
b. The Call Center shall be established in **Gurugram** and the same is to be operated & maintained round the clock (24x7) in three daily shifts operating preferably from 7.00 AM to 3.00 PM, 3.00 PM to 11.00 PM and 11.00 PM to 7.00 AM. However, DHBVNL reserves its right to modify the shift timing or introduce additional full/half shifts, as per requirement, overlapping the above shift timings.
c. The selected Business Associate (BA)/ Call Center Agency is also required to provision the functioning of Call Center using Work from Home (WFH) services so as to meet with the situation arising out of pandemic or any other such conditions warranting WFM or to accommodate additional resource requirement, as per DHBVNL's requirement.
d. Before operationalizing the Call Center activities, the firm shall take approval for setting up the call center setup anywhere in Gurugram. The process for setting up of call center must be completed and the same shall be made operational within 45 days from the date of issuance of LoA.
e. The firm shall depute its representatives for preparation of Training Manual/Questionnaires in consultation with various Wings of DHBVNL i.e., Commercial, Back Office, R-APDRP, IT, etc. before establishment of the Call Center.
f. The above training manual shall be approved by DHBVNL.
g. Thereafter, the training to the Master Trainers-cum- Team Leaders and Shift Managers shall be conducted by the firm under the supervision of DHBVNL representative(s).
h. Mandatory training for i.e. minimum 15 days or as deemed necessary to the call center agents, supervisors/executive (including DHBVNL employee deputed at Call Center/BSK), on DHBVNL Processes, CHS Portal, soft skills and telephone etiquettes for all the newly inducted batches in the supervision of DHBVNL representative. However, it shall include at least 7 days of hands-on training. In case of selection of the agent, the ibid 7 days training period shall be considered as deployment period for the purpose of calculation of penalty.

i. The firm shall also propose a suitable mechanism for periodic assessment and Reward & Recognition for the resources deployed.

j. Further mandatory one-man day (i.e. 8 Hours) refresher trainings shall be held on monthly basis or as per requirement.

k. CRM software will be provided by DHBVNL. All the required Hardware, Infrastructure, PRI lines (preferably on SIP, mapped to existing toll-free numbers i.e. 1912 and 1800-180-4334), call center solution, Landing number for Toll Free no., Gateway etc. for registering complaints at Call Center and to carry out further operations shall be provided by BA.

l. Call charges (Toll Free charges and PRI/SIP charges) as per actual will be reimbursed to BA for which BA will raise additional invoice along with routine invoice. Also, complaints have to be landed on call center CRM on toll free no. to be provided by bidder and no. 1912 dedicated for electricity related complaints.

m. BA will be responsible for coordinating with Network service Providers/ Network Operators for mapping of toll-free nos. & 1912 on PRI/SIP lines.

n. BA will provide agents with workstation with sufficient processing capability and good quality headsets & in a proper working environment as per the technical specification provided.

o. DHBVNL will also depute its officers at call center for proper monitoring & operations, BA shall provide proper office space along with workstation & access to Dialer/PBX and other application required.

p. Adequate CCTV cameras must be installed at Call Center area to cover the entire facility including all the agents 24x7 & web-based access of CCTV link must be provided to DHBVNL for monitoring of the Call Center

q. Call center must have biometric attendance system and BA must submit biometric attendance of the agents on monthly basis.

r. Call Center must be established as per the industry standard. It shall include proper ventilated area and shall also include provisions like fire exit, fire extinguishers, separate washrooms for females, etc. The call center shall not be established at basement level. Center should be designed with appropriate space between the seats and partitions so that there are minimum background disturbances in the call. Call Center shall also have minimum of 2 hours power backup for all IT equipment's.

s. With respect to the establishment of Call Center, DHBVNL reserves the right to ask the agency to shift the same to another location at its own risk & cost if the proposed/established call center is not found suitable during the contract period.

t. The Internet connectivity, CRM software, Seating space and electricity at BSK will be in scope of DHBVNL. Further, all other IT Infra including desktop, Telephony System, etc. shall be in the scope of BA.

u. BA may be required to take manual feedback of exceptions generated via CHS System.

v. BA will be required to integrate its telephony solution (including Dialer/IPBX) with CHS for enabling all information to be displayed on CHS for Dashboard & MIS report. Bidder should be able to deliver all Call logs, voice logs, voice recordings and other

necessary details required by DHBVNL in desired format on daily basis. 100% calls shall be recorded on call center and also on BSK. The call recording shall be maintained at least for a period of 1 months on live server (for access by DHBVNL as and when required) and additional 3 months in archive and the same shall be provided to DHBVNL as per requirement.

w. DHBVNL may deploy employees for handling the consumer/feedback calls at each of the circle level BSK offices or Call Center. The training of DHBVNL employee shall also be in the scope of the firm.

x. In addition to above point, the firm shall also ensure web-based access to live dashboard along with MIS Reports of the Telephony System.

y. BA will procure Six (6) PRI/SIP lines with 30 channels each for inbound and one (1) PRI/SIP lines with 30 channels for the outbound in the name of DHBVNL from reputed/reliable operator/ service provider. (DHBVNL may ask BA to increase/decrease inbound & outbound PRI/SIP channels as per requirement).

z. DHBVNL shall only reimburse the charges of the toll free and PRI/SIP lines as per actual.

aa. BA may be required to monitor important portals for DHBVNL like, CM portal, CPGRAMS etc. for related complaints and take action as per required process flow of DHBVNL.

bb. Further DHBVNL shall reserve its right to deploy its resources (or of any other agency) (as additional or replacement) in the call center or at BSK offices, for performing the tasks assigned to agents, Team leader, Quality Auditors, Shift Incharge and Project Manager on special circumstance basis i.e. poor performance, maintaining business continuity, etc.

cc. The firm shall make provision for providing seating space along with Workstations for DHBVNL representatives deployed at the Call Center

dd. Escalation in case of non-routine issue/complaint or in case of consumer complaints (outside the purview of RTSC). The Escalation Matrix shall be as follows.

Call Center Agent >>>Team Leader>>>Shift Manager>>>Project Manager>>>DHBVNL Representative

ee. In case of wrong/unnecessary escalations to DHBVNL, penalty shall be levied.

ff. The firm has to submit proposal (along with resource readiness) for proposed daily manpower requirement for the coming quarter at least 45 days in advance. However, DHBVNL shall reserve its right to direct the successful agency to increase/decrease the manpower at the Call Center and the firm shall deploy the additional resources within 15 days from the date of intimation by DHBVNL.

gg. Final selection of agents/ manpower deployed shall be taken by DHBVNL representative after assessing the quality of candidates with respect to the assigned role.

hh. In case of any unforeseen situation, the firm may continue the service of agent to the next shift through overtime, as per the law.

ii. It shall be responsibility of the firm to maintain buffer staffing to handle sudden unforeseen events such as absenteeism, so as to ensure availability of staff/agents as per deployment plan.

jj. Roles and responsibilities of various resources as per Annexure of RFP.

A. DIALER/EBPAX SYSTEM

a. Dialer/EPAX System (Telephony Solution or contact center solution) preferably cloud based solution, shall support distributed architecture. All calls of central call centers and BSKs shall be managed by a central solution. BA may host solution of MEITY empaneled cloud or locally at call center premises on High Availability.
b. Proposed solution should support security components and encryption mechanism Solution should support Voice Log Encryption to secure data at rest and support security for data in transit too.
c. Agent should have an option to take call from IP phone and softphone from supported browsers like IE, Firefox, Chrome.
d. The solution should support work from home model and be capable of extending the contact center capabilities to mobile devices (Android and iOS) of agent.

The dialer system should have the capability of automatically dialing out to the consumers (without actually disclosing the consumer mobile number) to deliver information like power supply position, payment reminders, payment acknowledgement and other information. The dialer should also be capable of working in both predictive and progressive modes depending on the requirement. System should have provision to send the SMS automatically through CRM apart from calling wherever applicable.

Complaints to be handled.

The types of complaints among others that shall be serviced are indicated below.

S. No.	Type of Complaint/ Grievances	Nature of Complaint
1	Supply Failure related	Supply failed–Individual
		Supply failed–Total Area
		Supply failed–One Phase
2	Voltage related	Voltage High
		Voltage Low
		Dim Supply
		Voltage Fluctuation
3	Transformer related	Transformer–Cable/Lugs burnt
		Transformer–Oil Leakage
		Transformer–Sparking at Pole
		Transformer–Smoke/Flames

S. No.	Type of Complaint/ Grievances	Nature of Complaint
4	Line related	Line Snapped
		Line–Tree branches touching
		Line–Bunched/Twisted
5	Pole related	Pole–Rusted/Damaged
		Pole–Fell Down
		Pole–Leaning
		Pole–Current leakage in pole
6	Information Services	FAX on demand for receiving various forms
		Operating procedure of various facilities
		Tariff/Miscellaneous/Planning related enquiries
7	Commercial related	Connection related
		Billing related
		Meter related
8	Other complaints	These complaints could be without clear details from caller. This could be because the fault may be on LT side (for example circuit cable faulty. Fuse off etc.) which the consumer may not be aware of.
9	Dunning Activities	Payment reminders to select defaulting consumers for collection of accounts receivables.

2 MANPOWER

2.1 QUALIFICATION AND SEATS

i. 1 No. Project Manager (Graduate with minimum 8 years of similar experience in call center services) for overall monitoring, coordination and reporting in DHBVNL.

ii. 3 No of Shift Manager (Graduate with minimum 5 years of similar experience in call center services) for shift management

iii. Appropriate no of team leaders preferably in the ratio 1:10 for Team management. However, the ratio shall not exceed 1:15 under any circumstances. (Graduate with minimum 3 years of similar experience in call center services)

iv. 70 seats for agents and expandable to further 30 seats for agents as per requirement. The seat requirement for team leader, shift manager, project managers and others shall be additional.

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v. BA shall provide other support staff for IT Hardware/Support, Call audit (1 for every 30 agents) and Trainers as per requirement.

vi. Shift Wise Agents and BSK agents (Graduate/Diploma with minimum 1 year of working as a Helpdesk/Call Center Agent with proficiency in Hindi, Haryanvi & English language accent).

vii. ESI/ EPF shall be payable as per the relevant guidelines/ notification/ instructions issued by the concerned Govt Authority

viii. The contractor shall strictly comply will all rules/ regulations etc. as per law in force, including but not limited to contract labour (A&R) Act, Shops & establishment Act, Employees Provident Fund Act, ESI Act, Minimum Wages Act and the payment of wages Act etc. as applicable during the currency of contract in respect of any employee or workmen employed or engaged by him. The contractor shall also comply with all the rules and regulations of local authority during the performance of field activities. For any violation in this regard, the contractor shall be solely responsible without any liability to DHBVNL. Further with specific reference to ESI/EPF stipulations under relevant Govt guidelines, shall be complied with strictly and documentary evidence thereof shall be provided along with each Bill to the full satisfaction of DHBVNL for release of the corresponding amount against the same.

ix. Except for Project manager, BA will have to arrange relievers at its own cost.

Call Center						
S No	**Resource**	**Morning Shift**	**Evening Shift**	**Night Shift**	**Total**	**Total Requirement (in man Months)**
1	Project Manager				1 General shift	12
2	Trainer				As per requirement	-
3	Shift Manager	1	1	1	3	36
4	Team Leader (Apr-Sep)	6	7	5		108
	Team Leader (Oct-Mar)	4	4	2		60
	Team Leaders (Total)					**168**
5	IT Expert for hardware/support				As per requirement	-
6	Quality Auditor				As per requirement	-
7	Agents Apr-Sep	60	70	50	180	1080
	Agents Oct-Mar	40	40	20	100	600

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Call Center						
S No	**Resource**	**Morning Shift**	**Evening Shift**	**Night Shift**	**Total**	**Total Requirement (in man Months)**
	Agents (Total)					**1680**

BSK & Other offices						
S No	**Resource**	**Morning Shift**	**Evening shift**	**Night shift**	**Total**	**Total Requirement (in man Months)**
1	Faridabad BSK (No. of Circle – 1)	4	4	4	12	144
2	Gurugram I &II BSK (No of Circle - 2)	3 (per circle office)	3 (per circle office)	3 (per circle office)	9 (per circle office)	216
3	All other BSK i.e. Hisar, Sirsa, Bhiwani, Jind, Fatehabad, Rewari, Narnaul and Palwal (No of Circles - 8)	2 (per circle office)	2 (per circle office)	2 (per circle office)	6 (per circle office)	576
4	CBO Wing				10 General Shift	120
5	Commercial Wing				2 General Shift	24
					Grand Total	**2760**

Note :DHBVNL reserves its right to increase or decrease the quantity/value of work by 25% before signing of contract and/ or during currency of contract at the same rates terms & condition as mentioned in the clause 15 "Quantity variation"

2.2 MANPOWER REMUNERATION

i. The firm shall be responsible for Timely disbursement of Wages i.e. salaries to be distributed not later than 5th of each month.

ii. The minimum salary for agents will be set at Rs 18,400. This amount will be adjusted in line with the Consumer Price Index (CPI) as specified in the price variation clause 16 to reflect changes in the cost of living.

3 ELIGIBILITY CRITERIA

The bidder should not be submitting the bid in consortium with any other firm.

S. No.	Qualification criteria	Documentary Evidence
1.	The bidder must be registered in India under Companies Act 1956 or Companies Act 2013.	Copy of Certificate of Incorporation /Registration under Companies Act, 1956 or 2013.
2.	The bidder must be registered with Tax	Copies of the relevant

S. No.	Qualification criteria	Documentary Evidence
	Department.	documents i.e. GST & PAN details of the firm, attested by the authorized signatory.
3.	The bidder must be registered with EPF organization.	Copies of the relevant documents i.e. EPF registration certificate, attested by the authorized signatory.
4.	Bidder is required to submit the Information on NJSP duly notarized regarding any litigation, current or during the last three years, in which the Bidder is involved, the parties concerned and disputed amount.	The bidder shall furnish certificate on NJSP duly signed by authorized signatory and duly notarized.
5.	The firm should have Average Annual Turnover of Rs. 30 Crores in the immediate last three (03) financial years as per audited annual accounts.	Bidder to submit CA certificate clearly specifying the s turnover along with audited balance sheet and Profit & loss statement for financial years 2021-22, 2022-23 and 2023-24. (As per Annexure-10 in Section-3)
6.	The Bidder should have a positive net worth in last three (3) Financial Years.	Bidder to submit CA certificate of Profit & loss statement for last 3 financial years 2021-22, 2022-23 and 2023-24.
7.	The Bidder Should be having experience of running/ had run the operations of his own Customer Services Call Centres for service providing Utilities in the field of Power, Water, Gas , Citizen Grievances for State Govt./ Govt. of India etc. having cumulative average (monthly average will be considered) of 200 seats/call centre agents/Full Time Equivalent Agents supported by work order and client certificate anywhere in India for minimum 1 year during last 3 years ending 31.03.2024.	Self-certification supported with work order and client certificate from the bidder. (As per Annexure-2 in Section-3)
8.	The Bidder should have relevant experience of setup of Central / State Government level helpline for citizen grievance inbound and outbound with at least 50 seats in last 5 years ending 31.03.2024.	Self-certification from the bidder. (As per Annexure-2 in Section-3)
9.	The Bidder shall have formal Quality Certification (with ISO 9001:2015/ ISO 27001:2013) complying with the scope related to IT enabled BPO Service, latest version valid for at least three months after submission of bid.	Copy of valid Certificate.
10	The declaration on NJSP by the firm that it is not blacklisted by any State Govt. or Agency and shall be liable for the consequences of wrong	The bidder shall furnish certificate on NJSP duly signed by authorized signatory and duly

S. No.	Qualification criteria	Documentary Evidence
	declaration. The bidder should submit along with the Bid no blacklisting certificate for the past three years.	notarized. (As per Annexure-9 in Section-3)
11	The Telephony solution should possess the below Certification at the time of Bidding: ISO: 9001, 14001 and ISO: 27001.	Copy of valid Certificate.
12	The Telephony solution must have a verifiable implementation in at least 3 Call Center/Customer care for any Government Sector/ PSU/ Public & private sector utility (Power).	Copy of work order along with certificate from the client.

- Above Customer Services Call Center work must be for a service providing utility and not merely a product selling or business promotion activities with industry standard CRM/ customized software solution/ client application operated by the call center agency.
- To be qualified capability and adequacy of resources to carry out the Contract, effectively. Bids shall also include the following information: -

a. **Ownership Change:** The Bidder shall be financially sound and must not be anticipating any ownership change during the period from Bid submission to two years. However, in case the firm is anticipating any such ownership change/takeover at any stage of the entire bid process and during the execution of contract. They shall seek prior approval from the Employer well in time. It shall be the sole discretion of the Employer to grant permission for such change in ownership / take over and if allowed by the Nigam for ownership change, the new company shall own all responsibilities and liabilities under the contract and the old firm should not be blacklisted by any state/center government or any of its agency. Bidder need to submit the declaration on above lines on NJSP duly notarized.(**Annexure-8**)

b. The above stated requirements are minimum and the DHBVNL reserves the right to ask for any additional information and also reserves the right to reject the proposal of any Bidder, if, in the opinion of the DHBVNL, the qualification data is incomplete, or the Bidder is found not qualified to satisfactorily perform the Contract. Notwithstanding anything stated above, DHBVNL reserves the right to assess the bidder's ability and capacity to perform the work, should the circumstances warrant such assessment in the overall interest of the owner litigation, current or during the last three years, in which the Bidder is involved, the parties concerned and disputed amount.

c. The successful bidder shall also sign a Non-Disclosure Agreement as the ownership of the data generated, shall lies with DHBVNL. Call center agency will indemnify DHBVNL against any Data misuse, Data breach, any security threat etc. to data or DHBVNL system accessed by call center agency.

d. The above stated requirements are minimum and the DHBVNL reserves the right to ask for any additional information and also reserves the right to reject the proposal of

any Bidder, if, in the opinion of the DHBVNL, the qualification data is incomplete, or the Bidder is found not qualified to satisfactorily perform the Contract. Notwithstanding anything stated above, DHBVNL reserves the right to assess the bidder's ability and capacity to perform the work, should the circumstances warrant such assessment in the overall interest of the owner.

4 PERIOD OF ENGAGEMENT

The overall period of engagement shall be for 5 years. However, the work order shall be issued initially for a period of 3 year and further extendable Y-O-Y basis for another 2 years during which the performance of the BA shall be sacrosanct. The tenure of the contract shall be reckoned from the date of commencement of operations of Call Center.

5 EARNEST MONEY DEPOSIT (EMD)

5.1 The Bidders shall have to pay for EMD fees online by using the service of secure electronic payment gateway. The secure electronic payments gateway is an online interface between suppliers and online payment authorization networks. The Payment for Tender Document Fee and eService Fee can be made by eligible bidders/ suppliers online directly through Debit Cards & Internet Banking Accounts and the Payment for EMD can be made online directly through RTGS / NEFT.

5.2 The EMD of the unsuccessful Bidders will be returned within 15 days on issuance of Work Order to the successful Bidder.

5.3 The EMD of successful Bidder will be refunded on submission of Contract Performance Guarantee (CPG)

The EMD may be forfeited: -

a) If the bidder withdraws / modifies its bid during the period of bid validity specified by the bidder in the tender; or

b) If the bidder does not accept the corrections to arithmetical errors identified during preliminary evaluation of his bid; or

c) In case of a successful bidder, if the Bidder fails to sign the contract; or

d) In case of a successful bidder, if the Bidder fails to furnish the performance guarantee.

e) No interest shall be payable by DHBVNL on the above EMD.

6 BASIS OF OFFER

I. The prices shall be quoted in Indian Rupees.

II. All prices quoted by the bidder shall be "FIRM" during the tenure of the Contract and shall not be subject to variation on any account, for all intents and purposes

except GST or as per “Price Variation” clause. No escalation for any other reason whatsoever shall be allowed over and above the bid price. GST shall be paid over and above the bid price. Income tax at source will be deducted by DHBVNL as per the applicable law and regulation and TDS certificate shall be issued to the selected Bidder by DHBVNL.

7 CONTENTS OF BID DOCUMENTS

The bid document contains the following documents:

Section-1	**:**	**Bid Invitation Letter**
Section-2	**:**	**Conditions of Contract**
Section-3	**:**	**Bid Forms & Performa**

8 SUBMISSION OF BID

Bid shall consist of two parts **"Technical Proposal"** and **"Financial Proposal"** and should be duly submitted online using the e-Procurement Portal https://etenders.hry.nic.in before the due date.

Note:

8.1 The Technical Proposal should contain scanned copy of EMD, Annexure-1, Annexure-2, and Annexure-4 duly filled and signed by authorized signatory and authority letter

8.2 The Bidder should agree to the entire scope of work and deliverables (given in the Covering Letter Annexure-1). No proposal for deviation/ part scope of work will be considered.

8.3 Details of past experience are to be provided in Technical Bid as per format provided at Annexure-2. Documentary evidence (e.g. Copy of work Order/Letter of Award/LoI or any other representative documents etc. and Project Completion Certificate / proof of final payment from their clients.) to be provided in support of past experience.

8.4 Adequacy of the proposed Methodology and work Plan in responding to the Scope of Work as per Annexure- 4.

8.5 Documentary proof in support of turnover shall be submitted by the Bidder in the form of Audited Annual Accounts duly certified by a Chartered Accountant.

8.6 The original and copy of the bid shall be typed or written in indelible ink and shall be signed by the Bidder or a person or persons duly authorized to bind the Bidder to the Contract. The letter of authorization shall be indicated by the written power of attorney accompanying the bid. All pages of the bid, except for un-amended printed literature, shall be initialed by the person or persons signing the bid.

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8.7 The bid shall contain no interpolation, erasure or overwriting except as necessary to correct errors made by the Bidder, in that case, each such correction shall be initialed by the person or persons signing the bid.

8.8 Queries relevant to the Bidding Documents prior to opening of NITs shall be addressed to: -

SE/IT,

Vidyut Sadan, Vidyut
Nagar, DHBVNL,
HISAR
Email ID: seit@dhbvn.org.in

9 Signature of Bid

9.1 The Bid must contain the name, residence and place of business of the person or persons making the Bid and must be signed and sealed by the Bidder with his usual signature. The names of all persons signing the Bid should also be typed or printed below the signature.

9.2 Bid by a partnership must be furnished with full names of all partners and be signed with the partnership name, followed by the signature(s) and designation(s) of the authorized partner(s) or other authorized representative(s). Copy of the Partnership deed will be supplied along with the Bid.

9.3 Bid by Corporation/Company must be signed with the legal name of the Corporation/Company by the President, Managing Director or by the Secretary/other person/or persons authorized to Bid on behalf of such Corporation/Company in the matter.

9.4 A Bid by a person who affixes to his signature the word 'President' 'Managing Director', 'Secretary', 'Agent' or other designation without disclosing his Principal will be rejected.

9.5 Satisfactory evidence of authority of the person signing on behalf of the Bidder shall be furnished with the Bid.

9.6 The Bidder's name stated on the proposal shall be the exact legal name of the firm.

9.7 Bids not conforming to the above requirements of signing may be disqualified.

9.8 The Financial Proposal should contain the detailed price offer for the consultancy services in online format as per Annexure-3.

10 BID OPENING AND EVALUATION OF PROPOSALS

10.1 Opening of Bid

The DHBVNL will open Bids in the presence of Bidder's representatives (up to 2

persons) who choose to attend, on the date and time for opening of Bids in the invitation to Bids or in case any extension has been given thereto on the extended Bid opening date & time notified to all the Bidders who have purchased the Bidding Documents.

The Bidder's representatives who are present shall sign a register evidencing their attendance.

The Bidders' names, Bid prices, modifications, Bid withdrawals and the presence or absence of the requisite Bid security and such other details as the DHBVNL, at its discretion, may consider appropriate will be announced at the opening.

No electronic recording devices will be permitted during Bid opening.

10.2 Clarification of Bid

To assist in the examination, evaluation and comparison of Bids, the DHBVNL may at its discretion, ask the Bidder for a clarification of its Bid. The request for clarification and the response shall be in writing and no change in the price or substance of the Bid shall be sought, offered or permitted.

10.3 EVALUATION OF PROPOSALS

The DHBVNL reserves the right to accept or reject any or all Bids, and to annul the Bidding process and reject all Bids at any time prior to award of Contract, without thereby incurring any liability to the affected Bidder or Bidders or any obligation to inform the affected Bidder or Bidders on the grounds for the DHBVNL's action.

Pooling by the bidders is strictly prohibited. If it is found at any stage that pooling has been done by the various bidders, then their bids / tender may be cancelled and action against the defaulting bidders will be taken such as black listing /debarring them from Nigam tenders for two years.

Bids shall be deemed to be under consideration immediately after they are opened and until such time official intimation of award / rejection is made by the DHBVNL to the Bidders. While the Bids are under consideration, Bidder and/or his representatives or the interested parties are advised to refrain from contacting by any means, the DHBVNL and/or his employees/representative on matter related to the Bids under consideration. The DHBVNL, if necessary, will obtain clarifications on the Bids by requesting for such information from any or all the Bidders, in writing. Bidders will not be permitted to change the substance of the Bids after the Bids have been opened. Any effort by a Bidder to influence the DHBVNL in any way may result in rejection of the Bidder's Bid.

A. Responsiveness check

The responsiveness check will be with respect to the following:

i) The Technical Proposal should contain scanned copy of EMD, Annexure-1,

Annexure- 2, and Annexure- 4 duly filled and signed and stamped by authorized signatory

ii) The Bidder should agree to the entire scope of work and deliverables (given in the Covering Letter Annexure-1). No proposal for deviation/ part scope of work/conditional will be considered.

iii) Details of past experience are to be provided in Technical Bid as per format provided at Annexure-2. Documentary evidence (e.g. Copy of work Order/Letter of Award/LoI or any other representative documents etc. and Project Completion Certificate / proof of final payment from their clients.) to be provided in support of past experience.

iv) Adequacy of the proposed Methodology and Work Plan in responding to the scope of work as per Annexure- 4.

v) Documentary proof in support of turnover shall be submitted by the Bidder in the form of Audited Annual Accounts duly certified by Chartered Accountant for meeting minimum turnover criteria.

vi) Nigam can inspect bidder's existing call center after the opening of part-I bids for the purpose of evaluation of bids.

vii) Nigam reserves the right to depute officers in the existing call centers of the bidder to access the quality of infrastructure, manpower, technology per se being used and various MIS reports as well as to take performance inputs from their existing customers etc. for which the bidder shall fully support and provide the access as well as required documents etc. In case the bidder refuses to assist DHBVNL in doing the qualitative analysis or if DHBVNL found that quality of existing call centers and bidder's manpower is not up to the desired satisfaction of DHBVNL, the bidder shall not be considered as qualified in the technical evaluation.

DHBVNL may call for any clarifications/ information if required. Bid of any firm not meeting any or all the above criteria, the technical evaluation of the firm will not be carried out and the bid may be liable for rejection.

B. Evaluation

The Bids shall be compared on the basis of lump sum prices for the entire scope of the proposal as defined in the Bidding document.

All evaluated Bid prices of all the Bidders shall be compared among themselves to determine the lowest evaluated Bid.

10.4 Opening of Financial Proposal

The Financial Proposal would be opened online only for the technically qualified Bidders. The date and time of opening of the Financial Proposal of the technically qualified Bidders will be intimated along with qualifications of the technically qualified Bidders. The Financial Proposal will be opened online in the presence of

the authorized representatives of the Bidders, who wish to be present.

10.5 Financial Proposal

The prices shall be quoted in Indian Rupees. All prices quoted by the bidder shall be 'FIRM' during the performance of the Contract and shall not be subject to variation on any account, for all intents and purposes except GST or as per "Price Variation" clause. No escalation for any reason whatsoever shall be allowed over and above the bid price. GST shall be paid over and above the bid price. Income tax at source will be deducted by DHBVNL as per the applicable law and regulation and TDS certificate shall be issued to the selected Bidder by DHBVNL.

The Bidders shall quote price on lump sum basis. The Assignment will be awarded to the technically qualified Bidder who has quoted the lowest sum of lump sum prices in Indian Rupees, without condition(s) or alternate price bid. Conditional Financial Proposals will be rejected out rightly.

DHBVNL shall evaluate the bids in respect to the substantive responsiveness of the bid or otherwise. DHBVNL shall carry out detailed evaluation of the substantially responsive bids. DHBVNL shall check the bid to determine whether they are complete, whether any computational errors have been made or required sureties have been furnished. A bid determined as substantially non-responsive shall be rejected by DHBVNL. DHBVNL shall evaluate in detail and compare the bids which are substantially responsive.

Arithmetical error in Price bid, shall be rectified on the following basis: -

a. If there is a discrepancy between the unit price and total price that is obtained multiplying the unit price and quantity, the unit price shall prevail and the total price shall be corrected by DHBVNL.
b. In case of discrepancy between words and figures, the amount in words shall prevail.
c. A bid determined as substantially non-responsive shall be rejected by DHBVNL.
d. DHBVNL may waive any minor infirmity or non-conformity or irregularity in the bid which does not constitute a material deviation.
e. DHBVNL shall evaluate in detail and compare the bids which are substantially responsive.
f. The evaluation of the ranking shall be carried out on the landed price of goods offered inclusive of all taxes.
g. The distribution of tendered quantity amongst the technically and commerciall y complied bidders shall be based on merits of each case.
h. DHBVNL shall have the sole discretion in deciding the number of parties on whom the orders shall be finally placed.

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11 Award Criteria:

The price discovery for the cases related to procurement of Goods & Stores (both Fixed Purchase and Rate Contract), Turnkey & Services project may be generally determined based on the rates quoted by the L1 bidder if the quoted rates are found to be reasonable by the indenting Department/Organization, and negotiations, if any, held with the lowest bidder.

A. However, negotiation could be held up to four number of such bidder(s), in addition to L1 bidder in cases where there are bidders falling within 5% of the L1 bidder. In case where the L1 bidder refuses to further reduce his offered price and any of the four bidders come forward to offer a price which is better than the price offered by L1 bidder, the bidder whose price is accepted becomes the L1 bidder. However, in such a situation, the original L1 bidder may be given one more opportunity to improve upon the discovered price. In case, the original L1 bidder further improve upon the price discovered during the negotiations, he would be treated as the L1 bidder.

B. In case where there is no bidder within 5% of the L1 bidder: -

a. L2 and L3 bidders will invariably be called for the negotiation in addition to the L1 bidder.

C. Further, the tenders shall be decided as per the prevailing instructions of Government of Haryana/Nigam.

12 Notification of Award

Prior to the expiration of the period of Bid validity and extended validity period, if any, the DHBVNL will notify the successful Bidder in writing by registered letter or by e-mail or fax, to be confirmed in writing by registered letter, that its Bid has been accepted.

The notification of award will constitute the formation of the Contract.

Upon the successful Bidder's furnishing of performance guarantee, the Owner will promptly notify each unsuccessful Bidder and will discharge his Bid security.

The firms failing to honor LOIs shall be Blacklisted / Debarred from doing business with Nigam besides the other action as per terms & conditions of the contract. The period of blacklisting of the defaulting supplier / Business Associate will be up to 3 years. The blacklisting of the Business Associate / supplier should be notified to all Power Utilities in the country and the names of such blacklisted supplier / Business Associate would also be put on the website of the Nigam.

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13 Signing of Contract

13.1 At the same time as the DHBVN notifies the successful Bidder that its Bid has been accepted, the DHBVN will send the Bidder the Contract Form incorporating all agreements between the parties.

13.2 Within fifteen (15) days of issuance of the Notification of the Award the successful Bidder shall sign and date the Contract and return it to the DHBVN separately. In case the successful bidder fails to submit the Contract Agreements duly signed within 15 days from the date of issue of LoA, the payment will not be released till the bidder submits the Contract agreements and penalty @ 0.25% per week or a part thereof shall be deducted from their bill subject to maximum 1% of Contract value.

13.3 The final contract agreements shall be signed within 15 days from the date, the firm submits the final Contract Agreements in all respect.

14 VALIDITY OF BID

Bidders shall keep their bids /proposals valid up to 180 (One hundred Eighty) days from the date of opening of the Part-II (Price Bid). Bidders may be required to further extend the validity of Bid as per the requirement of DHBVNL.

In exceptional circumstances, prior to expiry of the original Bid validity period, the Employer may request the L-1 Bidder to extend the period of validity for a specified additional period. The request and the responses thereto shall be made in writing or by e-mail / fax. The bidder may refuse the request without forfeiting its bid security. The Bidder agreeing to the request will not be required or permitted to modify his Bid but will be required to extend the validity of his Bid for the period of the extension. Further, in case of refusal or no response by L-1 bidder till the expiry of bid validity period, the tender shall be dropped. In any case, the EMD of bidder other than L-1 shall invariably be refunded, preferably, within 14 days after expiry of bid validity.

15 QUANTITY VARIATION

The employer reserves the right to increase or decrease the contract value & Services specified without any change in unit price or other terms & condition during the execution of contract depending upon the final/actual requirement. The quantity of individual items may, therefore, vary as per actual requirement. The payment shall be made on actual basis for the services rendered. DHBVNL reserves the right to increase / decrease the quantity / value of works by 25% before signing of contract and/or during the currency of the contract at the same rates terms and conditions. The quantity variation allowed shall be within ± 25% of contract value/works.

16 PRICE VARIATION

The bidder may be allowed (only subject to prior approval of DHBVNL) price

variation on the manpower rates quoted by the bidder to cover increase in price index from time to time during the tenure of the contract. The Price variation clause shall be applicable from the 1st day of next month after completion of the first year from date of award & subsequently allowed on yearly basis till the completion of contract/extended period as the case may be. Price variations shall be computed on variation in consumer price index issued by Department of Economics and Statistical Analysis, Govt. of Haryana.

Formula shall be as under: -

V = A / B * 100

Where, V: Variation in consumer price index.

The variation % so computed shall be applied to the unit rates quoted by the bidder.

A: Price index rate applicable on the 1st day of a next month immediately after the end of one year from the date of award of contract. For subsequent increase beyond first year, Price index rate as applicable on the first day after expiry of 1 year period thereafter.

B: Base index rate prevailing on the first working day of the month, one month prior to the date of tender opening.(Part -1 or technical part of the bid)

17 TERMS OF PAYMENT

- Successful bidder shall raise monthly invoices with the office of Chief Engineer/IT, DHBVNL, Hisar (accompanied with all requisite documents) and payments against the invoice submitted shall be released on 30th days from date of submission of invoice with all the relevant documents.
- 100 % payment shall be made on 30th day from date of submission of invoice with complete documents.
- The successful bidder shall raise invoice during the AMC period and submit the following documents:
    - Invoice in triplicate.
    - GST certificate to indemnify the submission of GST.
    - Performance report of the manpower deployed as per SLAs.
    - Documentary evidence against the disbursal/contribution of ESI, PF, Salary, etc.
    - Certificate against compliance of all the relevant Govt rules & regulations for operation and maintenance of Call Center established for DHBVNL.
    - Any other document as per requirement.

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- The SLAs will govern the penalty and reductions from payments for inferior/partial deliverables.
- Payment due to the firm shall be made by the office of FA&CAO/CBO as per invoice approved by SE/IT.

18 PROJECT COMMENCEMENT: -

Before operationalizing the Call Center activities, Selected BA should take approval for setting up the call center setup anywhere in area under administrative control of DHBVNL. The process for setting up of call center must be completed and the same shall be made operational within 45 days from the date of issuance of LoA.

19 CONTRACT PERFORMANCE GUARANTEE (CPG)

- Within 15 days of receipt of LOA/LOI, the successful Bidder, to whom the Work is awarded, shall be required to furnish a performance Bank Guarantee from a Scheduled/ Nationalized Bank, in the form/ Annexure attached in Section-3 in favour of the DHBVNL. The guaranteed amount shall be equal to ten percent (10%) of project cost valid up to 90 days after the expiry of contract period.
- Further Penalty @ 0.05% per day or part thereof subject to maximum 2%of the value of BG if bank guarantee not submitted within 15 days from the date of issue of LOA/LOI. Accordingly, DHBVNL shall place the detailed work order.
- If the bank guarantee not submitted within 45 days from the date of issue of LOA/LOI, the employer/ Nigam reserves the right to cancel the LOA and initiate the action for allotment to L-2 firm at L1 rate or below.
- However, before the expiry of above mentioned 45 days the contractor may seek approval for grant of additional one month (maximum) on payment of the entire penalty amount for 45 days as mentioned above. The grant of one month will not entitle the firm to claim the extension of the scheduled completion time.

20 SLAs: -

Penalty On Account of Operational Deficiencies

After commencement of complete system, the deficiencies in operation, maintenance and failure to meet SLAs will attract penalties as under:

S. No.	Item	Process for Complaint Handling for ServiceLevel Agreement Terms	Penalty
1	Default in not deputing call center agent in requisite	The vendor will provide system generated biometric attendance. However, the same shall be correlated with	For non-deployment of agents/resources in requisite number, a deduction at the rate of 300% (100% remuneration,

S. No.	Item	Process for Complaint Handling for ServiceLevel Agreement Terms	Penalty
	numbers in desired time/ shift.	Dialer login/access report with agent ID for verification.	as Expert was not available, and 200% as penalty/damages) of the monthly rate of the Expert divided by 26 shall be made for each day of absence from the monthly remuneration charges payable for that month
2	Availability of Telephony solution (provided by BA)	Telephony solution availability will be 99% on a monthly basis	Penalty will leived equal to percentage % drop/decrease in the required telephony solution, of the monthly call centre invoices.
3	High Attrition Rate	High rate of call centre's agents resigns or retire with in a month. Attrition $rate$ = $(Agent\ left\ process\ in\ a\ month)$ X 100/ $(Total\ no\ of\ agents\ in\ month)$	Attrition rate more than 5% will attract monthly penalty as below: 0.1% of monthly bill value for every 1% breach or part thereof
4	Social Media complaints	All the received communications in X, Facebook and emails must responded within 24 hours. Each communication must be recorded in the suitable category in the CHS Portal	Rs. 3/- for each default.
5.	Infrastructure	Bidder has to ensure power back up at the center with requisite UPS and DG sets.	10,000/- per hour for no supply in call center
6.	Performance Parameters	Average Hourly productivity of agents 75%.	0.1% of monthly bill value for every 1% breach or part thereof separately for each parameter. Note: 1.In case the calls exceed the average calls (as per the past trend) in any month by more than 10%, then SLA for waiting time and abandon rate parameter shall not be applicable.
		Avg waiting time less than 20 sec.	
		Call abandon rate less than 2% (excluding calls abandoned within 5 sec)	
		Average Handling Time within 180 sec.	
		Average Quality Audit Score more than 90%.	

S. No.	Item	Process for Complaint Handling for ServiceLevel Agreement Terms	Penalty
		Audits of calls and replies posted through Email/Facebook/Twitter (5% upto maximum 10,000 numbers in a month) as per the checklist/ parameters given by DHBVNL.	2. The SLA for agent productivity shall not be applicable after completion of the assigned tasks as per the following priority during the lean period: P1: Incoming Calls at the Call Center P2: Feedback calls for supply related complaints. P3: Feedback calls for commercial and other misc complaints. P4: Calls for payment reminders to defaulting consumers. P5: Feedback calls for various Govt initiatives i.e. CM Window, CP-GRAMS, etc. P6: Information regarding Nigam's specific schemes or offers. P7: Any other task assigned by DHBVNL

Maximum penalty against SLA's (mentioned in above table) shall be limited to 20% of monthly invoice value.

In addition to the above, some additional proposed penalties which might be necessary for better performance of Call Center Vendor are as detailed below: -

S. No.	Description of Penalty	Reason for addition of penalty clause
1	In case of serious violations i.e. rude/abusive behavior, a penalty of Rs 20,000/- shall be levied. The said resource shall be terminated & blacklisted in case of 2nd time offence.	To ensure high level of performance from call center agents.
2	In case any complaint is received or wrong/unnecessary escalations or any discrepancy observed regarding performance of Call Center or any of its agent/resources/Telephony solution then investigation will be got carried out by DHBVNL through its officers or any other person. During investigation, if any laxity is found on the part of the Call Center Agency, for not following any term of Agreement or amendment thereafter regarding handling of complaints of consumers of DHBVNL then, a penalty of **Rs. 2000/-** will be imposed per instance in addition to the already mentioned penalties.	To curb the tendency of not following Agreement / SLA terms.

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21 Delay in the Vendor's Performance

If at any time during performance of the Contract, the Vendor should encounter conditions, not attributable to him or his associates, impeding timely completion of the services under the contract and performance of the services, the Vendor shall promptly notify the Nigam in writing of the fact of the delay, its likely duration and its cause(s). As soon as practicable, after receipt of the Vendor's notice, the Nigam shall evaluate the situation and may at its discretion extend the Contract time for performance, in which case the extension shall be ratified by the parties by amendment of the Contract. Any delay by the Contractor for reasons other than those given in the above paragraph in the performance of its Contract obligations shall render the Vendor liable to any or all of the following:

- Forfeiture of its performance security.
- Imposition of penalty.
- Termination of the Contract for.

22 Incentive

The firm shall be eligible for incentive as per the following details:

S.No.	Description	Limits criteria for imposition of penalty	Minimum criteria for Incentive eligibility	Incentive
1	Monthly Attrition rate	More than 5%	Less than 1% for a particular month	0.1 per cent of monthly invoice for that particular month
2	Average Hourly productivity of agents (Monthly)	Less than 75%	Average per agent hourly productivity should be more than 80% for a particular month	Rs 100/- per agent for each agent having average hourly productivity more than 90% for that particular month
3	Monthly Average Quality Audit Score	Less than 90%	Average per agent Quality Audit Score, should be more than 95% for a particular month	Rs 500 per agent for each agent having score more than 98% subject to its validation by DHBVNL's representative.

Max incentive payable (cumulatively) in case of S. No. 1 to 3, shall be limited to 5% of the monthly invoice value.

23 Penalty for Delay in Operationalization of Call Center

If the vendor fails to deliver on time as per the time schedule mentioned above, the vendor shall be liable to pay penalty @ 0.5% per week or part thereof of the contract price for implementation of services until the delivery schedules and full deliverables are restored to agreed committed levels subject to a ceiling of 10% of the contract price. Once the maximum is reached, the Nigam may consider termination of the contract.

24 Blacklisting of the Firms:

The Business Associate will be blacklisted,

I. If the Business Associate backs out of the contract at any stage, the firm will be issued two 15 days notices to commence the work failing which no further notices will be issued and the firm will be straightway blacklisted, without prejudice to other terms and conditions of the contract.

II. If the firm indulge in fraudulent and illegal practices such as forgery, cheating or any civil/criminal wrongdoing or any grave misconduct of similar nature which has a direct impact on the contract and the Nigam. In such case no notice of default will be issued, and the firm will be straightway blacklisted in addition to initiating the legal proceedings etc., without prejudice to the other terms and conditions of the contract.

III. If the Business Associate fails to complete the work within the delivery/completion schedule, the deduction of the penalty will commence as per the terms and conditions of the present Bid Documents. On deduction of the complete penalty as admissible, the Business Associate will be issued one 15 days' notice to complete the work failing which the Performance Bank Guarantee will be forfeited. Subsequent to the above two 15 days notices will be issued and the firm will be blacklisted thereafter.

The Performance Bank Guarantee of the Blacklisted firms will be forfeited, and the firm shall have no claim whatsoever on the same.

However, Procedure and other conditions of contract are regulated by procurement manual of DHBVNL/UHBVNL, so, these will be applicable to the Business Associate as per procurement manual of DHBVNL/UHBVNL and amendments thereof from time to time.

"Period of Blacklisting shall be minimum three years and all power utilities in the country shall be intimated about the same."

25 OTHER TERMS & CONDITIONS

i) The financial proposal by the Bidders shall be in Indian Rupees as per format enclosed (Annexure-3) with no escalation provision for any reason whatsoever till the completion of the Assignment.

ii) The Bidder shall make available appropriate personnel as may be required for successful execution of the Assignment and or as may be required by DHBVNL on specified dates, venues and time in order to meet the obligations of DHBVNL.

iii) All claims shall be raised by the Bidder as per the terms of payment after being due and would be accepted for payment based on satisfactory progress and quality of the work at the sole discretion of the competent authority.

iv) In case there is a delay by the Bidder in accomplishing the deliverables which in the opinion of DHBVNL is attributable to the Bidder, DHBVNL reserves the right to get such specific work(s) done through any other Agency(ies) at the risk and cost of the Bidder for timely completion of the deliverables.

v) In case the performance of the proposed team member(s) is not satisfactory, the Bidder will be asked to change/replace the team member(s) within three days of receipt of such request from DHBVNL with a member acceptable to DHBVNL.

vi) DHBVN7L can cancel the contract at any stage of the work, in case it is found that the knowledge of a team/team member(s) and or his/her performance is not satisfactory, any information given at the time of submission of the bid is found to be incorrect.

vii) The employee may at any time by written order given to the bidders, make addition/charge within the general scope of the contract.

viii) Given the nature of the work being entrusted, the firm would have to give an undertaking to the effect that the contents/ essence of any reference/ documents given would not be disclosed to any third person without the express approval of DHBVNL, failing which the engagement of the firm could be terminated.

ix) If due to any reason or decision of the Govt /Client, the Assignment is dropped and the Bidder is directed to discontinue work, the Drop-Dead Fee would be limited to the payments received by the Bidder and the claims already raised, as per the payment terms relating to the Assignment, till the point of calling off the Assignment or as mutually agreed.

x) **Conflict of Interest**: Organizations would not be hired for any work whose interests are in conflict with their prior or current obligations to the other organizations/ clients or that may place them in a position of being unable to carry-out the work assigned to them at any point of time during the currency of engagement by DHBVNL or above all enable them to pose a threat to DHBVNLs consulting business in future. Without limitation on the generality of the foregoing, organizations would not be hired, under the circumstances set forth below:

Organizations that have business or family relationship with member(s) of DHBVNLs employees or persons positioned in or on the Board of these two organizations by whatever process would not be engaged. A declaration to

this effect would be taken from the organization when being engaged, and if found incorrect, the organization would be debarred from any further engagement by DHBVNL ever.

xi) The Bidder shall keep DHBVNL, both during and after the term of this Contract, fully and effectively indemnified against all losses, damage, injuries, deaths, expenses, actions, proceedings, demands, costs and claims, including, but not limited to, legal fees and expenses, suffered by DHBVNL or any Third Party, where such loss, damage, injury or death is the result of a wrongful action, negligence or breach of contract by the Bidder, or the Bidder's personnel, including the use or violation of any copyright work or literary property or patented invention, article or appliance

xii) No offer should be sent by Fax or E-mail.

xiii) DHBVNL reserve the right to accept or reject any or all Proposals/Offers or annul the bid Process or modify/ change the content of the bid document without assigning any reason.

xiv) At any time prior to the deadline for submission of Bids, the DHBVNL may, for any reason, whether at its own initiative or in response to a clarification required by a prospective Bidder, modify the Bidding Documents by amendment(s). The amendment will be notified through Corrigendum uploaded in the websites of DHBVNL and https://dhbvn.org.in DHBVNL will bear no responsibility or liability arising out of non-receipt of the same in time or otherwise. In order to afford prospective Bidder reasonable time in which to take the amendment into account in preparing their Bids, the DHBVNL may, at its discretion, extend the deadline for the submission of Bids. Such amendments, clarifications etc. shall be binding on Bidders and will be given due consideration by the Bidder while they submit their Bids and invariably enclose such documents as a part of the Bid.

xv) DHBVNL shall not entertain any claim of any nature, whatsoever, including without limitations, any claim of expenses in relation to the preparation, submission or any other activity relating to bidding or any other expense till award of contract.

xvi) The Bidder shall not be permitted to sub-contract any part of its obligations under the Contract with the utilities.

SECTION -2 CONDITIONS OF CONTRACT

DHBVNL

1. Definition and Interpretations

1.1. Definition

In the Contract (as hereinafter defined) the following words and expressions shall have the meanings hereby assigned to them:

1.1.1. "Contract" means the agreement between the Employer and the Business Associate for the execution of the complete Works incorporating the Conditions, Specifications, price and other completed Schedules, Bid, Letter of Award and such further documents as may be expressly incorporated in the Letter of Award.

1.1.2. "Conditions" means conditions of Contract.

1.1.3. "Commencement Date"shall be as per clause 18 of section 1..

1.1.4. "Contract Agreement" means the documents recording the terms of the Contract between the Employer and the Business Associate.

1.1.5. "Contract Price" means the sum stated in the Letter of Award as payable to the Business Associate for execution and commissioning of the Works and adjusted, after optimization, on the basis provided in the Contract. It shall be the sum total of all the amounts entered by the Business Associate in the Schedule of Prices.

1.1.6. "Business Associate" means the person whose Bid has been accepted by the Employer and the legal successors in title to the Business Associate but not (except with the consent of the Employer) any assignee of the Business Associate.

1.1.7. "Business Associate's Equipment" means all appliances or things of whatsoever nature required for the purposes of the Works but does not include Plant.

1.1.8. "Business Associate 's Risk" means the risk defined in Sub-Clause

1.1.9. "Defects Liability Certificate" means the certificate to be issued by the Employer to the Business Associate.

1.1.10. "Defect Liability Period" means one year following commissioning of line on load and Taking Over during which the Business Associate is responsible for making good defects and damage.

1.1.11. "Employer/Owner" means the DAKSHIN HARYANA BIJLI VITRAN NIGAM and the legal successors in title to the Employer/Owner but not (Except with the consent of the Business Associate) any assignees of the Employer/Owner.

1.1.12. “Employer’s Drawings” means all the Drawings and information provided by the Employer to the Business Associate under the Contract.

1.1.13. “Force Majeure” has the meaning assigned to it under Sub Clause 36.

1.1.14. “Gross Misconduct” means any act or omission of the Business Associate in violation of the most elementary rules of diligence which a conscientious Business Associate in the same position and under the same circumstance would have followed.

1.1.15. “Notification of Award/Letter of Award” means the formal award by the Employer of the Bid incorporating any adjustments or variation to the Bid agreed between the Employer and the Business Associate.

1.1.16. “Performance Guarantee” means the security to be provided by the Business Associate for the due performance of the Contract.

1.1.17. “Program” means the Program to be submitted by the Business Associate and any approved revision thereto.

1.1.18. “Provisional Sum” means a sum, described as such for the execution of Works or for the supply of goods or services to be used.

1.1.19. “Risk Transfer Date” means the date when the risk of loss or damage to the Works passes from the Business Associate to the Employer.

1.1.20. “Schedule of Prices” means the completed price schedule or any part or individual schedule thereof, submitted by the Business Associate with his Bid and forming a part of the Contract documents.

1.1.21. “Site” means the place or places, where Work is to be done by the Business Associate or to which Plant is to be delivered, together with so much of the area surrounding the same as the Business Associate shall with the consent of the Employer use in connection with the Works otherwise that merely for the purposes of access.

1.1.22. “Specification” means the specification of the Works included in Bidding Documents and includes the Contract and any modification thereof.

1.1.23. “Taking-over Certificate” means the Certificate to be given by the Engineer to the Business Associate in accordance with Clause-22.

1.1.24. “Bid” means the Business Associate’s priced offer to the Employer for the execution of the Works.

1.1.25. “Tests on Completion” means the test specified in the Contract or otherwise agreed by the Employer and the Business Associate to be performed before the Works are taken over by the Employer.

1.1.26. "Time for Completion" means the time stated in the conditions of Contract for completing the Works or any Part thereof and passing the tests on completion calculated from the commencement date unless extended.

1.1.27. "Variation Order" means any written order, identified as such issued to the Business Associate by the Employer.

1.1.28. "Works" means work to be done by the Business Associate under the Contract.

1.1.29. "Government" means the Government of India/Government of Haryana.

1.1.30. "Other Business Associate" means any party or parties having a direct Contract with the Employer for Work outside the scope of this Contract and shall include any Sub-Business Associate of this "Other Business Associate "

1.1.31. "Engineer" means Assistant Engineer/ Assistant Executive Engineer, Executive Engineer, DHBVNL appointed by the Employer for this Work.

1.1.32. "Sub Business Associate": The Sub-Business Associate used herein refers to a party or parties having a direct Contract with the Business Associate, whom any part of the Contract has been sublet by the Business Associate with the consent in writing of the Engineer-in-charge.

1.1.33. "**Engineer-in-charge"** i.e. SE/IT, DHBVNL, Hisar shall act as Nodal Officer for all intent & purpose after award of contract/work order.

1.2. Written Communication

Wherever in the Contract provision is made for communication to be "Written" or "in Writing" this means any hand-written, type written or printed communication including telex, cable and facsimile transmission addressed to the Engineer-in-Charge, Engineer or other agencies of the Owner, involved in execution of the Contract.

1.3. Notice, Consent, and approvals

Wherever in the Contract provision is made for the giving of notice, consent or approval by any person, such consent or approval shall not be unreasonably with- held. Unless otherwise specified, such notice, consent or approval shall be in writing and the word "notify" shall be construed accordingly. Engineer-in-charge shall be Nodal Officer in this respect. He may delegate his powers to the subordinate officer wherever required. All such letter and notices shall be addressed by the Business Associate to the Engineer-in-charge as required with a copy to Chief Engineer/Commercial. However, routine correspondence

may be exchanged by him with the Engineer with a copy to Engineer-in - charge.

2. Employer's Decisions and Instructions

2.1. The Business Associate shall proceed with the decisions and instructions given by the Employer or its representative in accordance with these conditions.

2.2. Confirmation in Writing

The Business Associate may require the Employer to confirm in writing any decision or instruction of the Employer which is not in writing. The Business Associate shall notify the Employer of such requirement without undue delay. Such a decision or instruction shall not be effective until written confirmation thereof has been received by the Business Associate from Superintending Engineer /Operation Circle Concerned or the Engineer identified by him/provided in the Contract.

3. Assignment

The Business Associate shall not assign the Contract or any part of his obligations under the Contract without the prior written consent of the Employer (Which shall not be unreasonably withheld). A charge in favour of the Business Associate's bankers of any monies due under the Contract shall not be considered an assignment.

4. Sub-Contracting

4.1. Not Allowed

5. Contract documents

5.1. Ruling Language

Where versions of the Contract are prepared in different languages, the English version shall prevail.

5.2. Day to Day Communications
The day-to-day communications shall be in English Language only.

5.3. Priority of Contract Document

Unless otherwise provided in the Contract, the Contract documents shall be as follows in order of priority: -

5.3.1. The letter of Award.
5.3.2. Conditions of Contract.
5.3.3. Bidder's Priced Offer.
5.3.4. Any other documents forming part of the Contract.

5.4. Documents Mutually Explanatory.

Subject to Sub Clause5.3, the Contract documents shall be taken as mutually explanatory. The Employer shall clarify any ambiguities or discrepancies.

6. Obligation of the Business Associate.

6.1. General Obligations

a. Business Associate shall have qualified managers & supervisors with adequate experience in execution of works/ providing services at the site/back end for satisfactory progress and successful execution of the work. The Business Associate shall employ on the execution of the works only such person as are skilled and experienced in their respective trades. The DHBVNL shall have full power at all times to object the employment of any employee not suitable for the work by the Business Associate and if the Business Associate shall receive notice in writing from the DHBVNL requesting the removal of any such men or man from the work, Business Associate is to comply with the request forthwith. No such employee after his removal from the work by request of the DHBVNL shall be re-employed or reinstated on the work by the Business Associate at any time except with the prior approval in writing of the DHBVNL.

b. BA shall not pay less wages than mandated by the Ministry of labor, Govt of Haryana, at any time during course of execution of work to its employees. In case of noncompliance, contract agreement can be terminated by DHBVNL at Bidders fault with forfeiture of PBG.

c. BA shall acknowledge surety, security & privacy of the client`s business data & other departments proprietary information or materials, whether developed by department or being used by department pursuant to a license agreement with a third party (the foregoing collectively referred to herein as “proprietary information”) are confidential & proprietary to user department.

7. Program

Within the time stated in the Contract Data the Business Associate shall submit to the Engineer for approval a Program showing the general methods, arrangement, order and timing for all the activities in the Works.

8. Business Associate’s Representative.

Objection to Business Associate’s Employee

DHBVNL

The Business Associate shall, upon the Employer's written instruction remove from the Works any person employed by him in the execution of Works, who mis- conducts himself or is incompetent or negligent.

9. Compliance with Laws

9.1 Compliance with Statutes, Regulations

The Business Associate shall, in all matters arising in the performance of the Contract, comply in all respects with, give all notices and pay all fees required by the provisions of any national or state statute, ordinance or other law or any regulation or by-law of any duly constituted authority.

The Contract shall in all respects be prepared and interpreted in accordance with the laws in force in India, including any such laws passed or made or coming into force during the period of the Contract.

The Business Associate shall be fully responsible for deducting the P.F. of the employees/labour Working under him as per statutory regulations and depositing the same with the concerned authorities.

9.2 Compliance with Laws

The Business Associate shall comply with the laws of India for work under the contract.

10. Labour

The Business Associate shall, follow Business Associate's Labour Regulation as applicable for HARYANA PUBLIC WORKS DEPARTMENTS

11. Issue of Certificate of Payment

Within 21 days after receiving an application for payment, which the Business Associate was entitled, the Employer shall issue a certificate of payment to the Business Associate showing the amount due. A certificate of payment, other than Final Certificate of payment, shall not be withheld on account of any part of the payment applied for being disputed. In such case a certificate of payment for the undisputed amount shall be issued.

12. Corrections to Certificates of Payment

The Employer may in any certificate of payment make any correction or modification that should have been properly made in respect of any previous certificates.

DHBVNL

13. Payment

The Employer shall pay the amount certified on 30th days from the date of issue of each certificate of payment to the Business Associate at his principal place of business.

14. Currency and Rates of Exchange.

All payments shall be made in Indian Rupees only.

15. Set Off

Any such money due and payable to the Business Associate under the Contract may be appropriated by the Owner and set-off against any claim of the Owner for the payment of a sum of money arising out of or under this Contract or any other Contract entered into by the Business Associate with the Owner.

16. Limitations of Liability

20.1 Liability after Expiry of Defect Liability Period.

Except in cases of criminal negligence or willful misconduct: -

a) The Business Associate shall not be liable to the Employer, whether in Contract, or otherwise for any indirect or consequential loss or damage, provided that this execution shall not apply to any obligation of the Business Associate to pay liquidated damages to the Employer.

b) The aggregate liability of the Business Associate to the Employer under the Contract shall not exceed the Contract price, provided that this limitation shall not apply to any obligation of the Business Associate to indemnify the Employer with respect to patent infringement.

17. Exclusive Remedies

The Employer and the Business Associate intend that their respective rights, obligations and liabilities as provided for in these conditions shall alone govern their rights under the Contract and in relation to the Works.

Accordingly, the remedies provided under the Contract in respect of or in consequence of: -

a) Any breach of Contract, or
b) Any act of negligence or omission, or
c) Death or personal injury, or
d) Loss or damage to any property.

DHBVNL

are, save in the case of Gross Misconduct, to be to the exclusion of any other remedy that either may have against the other under the law governing the Contract or otherwise.

18. Mitigation of loss or Damage

In all case the party claiming a breach of Contract or a right to be indemnified in accordance with the Contract shall be obliged to take all reasonable measures to mitigate the loss or damage which has occurred or may occur.

19. Force Majeure.

24.1 Definition of Force Majeure.

Force Majeure means any circumstances beyond the control of the parties including: -

a) War and other hostilities, (whether war be declared or not), invasion, act of foreign enemies, mobilization, requisition or embargo.

b) Ionizing radiation or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel, radioactive toxic explosive, or other hazardous properties of any explosive nuclear assembly or nuclear components thereof.

c) Rebellion, revolution, insurrection, military or usurped power and civil war.

d) Riot, commotion or disorder, except where solely restricted to employees of the Business Associate.

e) Natural calamity (such as Earthquake, Cyclone, Floods etc.).

24.2 Effect of Force Majeure.

Neither party shall be considered to be in default or in breach of his obligations under the Contract to the extent that performance of such obligations is prevented by any circumstances of Force Majeure which arise after the date of the Notification of Award.

24.3 Notice of Occurrence.

If either party considers that any circumstances of Force Majeure have occurred which may affect performance of his obligations he shall promptly notify the other party.

24.4 Performance to Continue.

DHBVNL

Upon the occurrence of any circumstances of Force Majeure the Business Associate shall endeavor to continue to perform his obligations under the Contract so far as reasonably practicable. The Business Associate shall notify the Employer of the steps he proposes to take including any reasonable alternative means for performance, which is not prevented by Force Majeure. The Business Associate shall not take any such steps unless directed so to do by the Employer.

24.5 Additional Costs caused by Force Majeure.

If the Business Associate incurs additional costs in complying with the Employer's directions, the amount thereof shall be certified by the Employer and added to the Contract Price.

24.6 Termination in Consequence of Force Majeure.

If circumstances of Force Majeure have occurred and shall continue for a period of 180 days, notwithstanding, the Business Associate may by reason thereof, having been granted an extension of Time for Completion of the Works, either party shall be entitled to serve upon the other, 30 days' notice to terminate the Contract. If at the expiry of the period of 30 days Force Majeure shall still continue, the Contract shall terminate.

24.7 Payment on Termination for Force Majeure.

If the Contract is terminated the Business Associate shall be paid the value of the Work done.

The Business Associate shall also be entitled to receive: -

The amounts payable in respect of any preliminary items so far as the Work or service comprised therein has been carried out and delivered and a proper proportion of any such item in which the Work or service comprised has only been partially carried out and delivered.

20. Business Associate 's Default

25.1 Notice of Default.

If the Business Associate is not executing the Works in accordance with the Contract or is neglecting to perform his obligations, there under, as seriously, to affect the Program for carrying out of the Works, the Employer may give notice to the Business Associate requiring him to make good such failure or neglect.

25.2 Nature of Business Associate's default.

If the Business Associate: -

a) Has failed to comply within a reasonable time with a notice.

DHBVNL

b) Assigns the Contract or Sub-Contracts the whole of the Works without the Employer's written consent, or

c) Becomes bankrupt or insolvent, has a receiving order made against him or compounds with his creditors, or carries on business under a receiver, trustee or manager for the benefit of his creditors or goes into liquidation.

The Employer may, after giving 15 days' notice to the Business Associate, terminate the Contract and expel the Business Associate from the Site.

Any such expulsion and termination shall be without prejudice to any other rights or powers of the Employer, or the Business Associate under the Contract. The Employer may upon such termination complete the Works himself or by any other Business Associate.

25.3 Valuation at Date of Termination

The Employer shall, as soon as possible after such termination, certify the value of the Works and all sum then due to Business Associate as at the date of termination.

21. Employer's Default

26.1 Nature of Employer's Default

The Business Associate may, by giving 30 days' notice to the Employer, terminate the Contract if the Employer becomes bankrupt or insolvent, has a receiving order made against him, compounds with his creditor, or carries on business under a receiver, trustee or manager for the benefit of his creditors or goes into liquidation, or

26.2 Payment on termination for Employer's Default.

In the event of such termination the Employer shall pay the Business Associate as amount payable for the work done by the firm up to termination date.

22. Notices

27.1 Notice to Business Associate

All certificates, notices or written order communications to be given to the Business Associate by the Employer under the conditions shall be sent by Airmail, Cable, telex, Regd. Post or facsimile transmission, to or be left at the Business Associate 's principal place of business or such other address as the Business Associate shall notify for that purpose or may be handed over to the Business Associate 's representative under acknowledgement.

27.2 Notices to Employer

Any notice to be given to the Employer under these conditions shall be sent by Airmail, Regd. Post, cable, telex or facsimile transmission to or left at the respective address notified for that purpose in the letter of award, or handed over

to the Employer's representative, authorized, to receive it.

27.3 Minutes of meeting

Instructions or notice to the Business Associate and notice from the Business Associate to the Employer record in a minute or protocol signed by the authorized representative of the given and of the recipient of such notice or instruction shall be valid notice or instruction for the purposes of the Contract.

23. TERMINATION FOR DEFAULT

.1 The DHBVNL, may, without prejudice to any other remedy for breach of contract, by written notice of default, sent to the agency, terminate this contract in whole or in part.

a) if the agency fails to deliver any or all the goods within the time period (s) specified in the contract, or any extension thereof granted by the DHBVNL.
b) if the agency fails to perform any other obligation(s) under the contract; and
c) if the agency, in either of the above circumstances, does not remedy his failure within a period of 15 days (or such longer period as the DHBVNL may authorize in writing) after receipt of the default notice from the DHBVNL.
d) On a notice period of 30 days.

.2 In the event the DHBVNL terminates the contract in whole or in part pursuant to above para the DHBVNL may take/procure, upon such terms and in such manner as it deems appropriate, services / goods similar to those undelivered and the agency shall be liable to the DHBVNL for any excess cost for such similar services / goods. However, the agency shall continue the performance of the contract to the extent not terminated.

24. TERMINATION FOR INSOLVENCY

The DHBVNL may at any time terminate the Contract by giving written notice to the agency, without compensation to the agency if the agency becomes bankrupt or otherwise insolvent as declared by the competent court provided that such termination will not prejudice or effect any right of action or remedy which has accrued or will accrue thereafter to the DHBVNL.

25. Termination for Convenience:

(a) DHBVNL, by Notice sent to agency may terminate the Contract, in whole or in part, at any time for its convenience. The Notice of termination shall specify that termination is for the DHBVNL convenience, the extent to which performance of agency under the Contract is terminated, and the date upon which such termination becomes effective.

(b) The services/goods those are complete and completion of work within twenty-eight. (28) days after agency receipt of the Notice of termination shall be accepted by the DHBVNL at the Contract terms and prices. For the remaining Goods/services, the DHBVNL may elect:

(i) To have any portion of work/services completed and delivered at the Contract terms and prices; and/or

(ii) To cancel the remainder and pay to agency an agreed amount for partially completed Goods/services and Related Services and for materials and parts previously taken/procured by agency.

- The agency should prepare and present a detailed exit plan within five calendar days of termination notice receipt to DHBVNL ("Exit Plan").
- The Nodal Officer or any other person designated by DHBVNL and along with designated team will review the Exit plan. If approved, the firm shall start working on the same immediately. If the plan is rejected, the firm shall prepare alternate plan within two calendar days. If the second plan is also rejected, the DHBVNL will provide a plan for the firm, and it should be adhered to in totality.

a. The Exit Plan should cover at least the following: -

i. Execute all documents that may be necessary to effectively transfer the ownership and title, including OEM warranties in respect of all equipment.

ii. Handover all developed codes, related documentation and other Configurable Items, if any in his possession.

iii. Handover the list of all IT Assets, passwords at all locations to DHBVNL.

b. The firm and DHBVNL will sign a completion certificate at the end of successful completion (all points tracked to closure) of the Exit Plan.

26. Taxation

a. The Business Associate shall be entirely responsible for payment of all taxes, duties, license fees etc. incurred until delivery of the Contract supplies to the Employer.

b. The Business Associate shall be solely responsible for the taxes that may be levied on the Business Associate's persons or on earning of any of his employee and shall hold the Employer indemnified and harmless against any claims that may be made against the Employer. The Employer does not take any responsibility whatsoever regarding taxes under Income Tax Act, for the Business Associate or his employees. If it is obligatory under the provisions under the Indian Tax Act, deduction of Income Tax at source shall be made by the Employer.

27. Advertising

Any advertising stating the subject of this Contract by the Business Associate in India or in other foreign countries shall be subject to approval of the Employer prior to the publication.

Publication of approved articles, photographs and other similar materials shall carry approval of the Employer.

DHBVNL

28. Industrial & Labour Laws

The successful bidder will certify that he has complied with the provisions of Industrial & Labour Laws including PF Act, ESI Act etc. as may be applicable.

29. Corrupt or fraudulent practices

The Nigam requires that Business Associate observe the highest standard of ethics during the procurement and execution of Nigam contracts. In pursuance of this policy, the Nigam: -

(a) defines, for the purposes of this provision, the terms set forth as follows:

(i) "Corrupt practice" means the offering, giving, receiving or soliciting of anything of value to influence the action of a public official in the procurement process or in contract execution: and

(ii) "Fraudulent practice" means a misrepresentation of facts in order to influence a procurement process or the execution of a contract to the detriment of the Nigam, and includes collusive practice among tenderer (prior to or after tender submission) designed to establish tender prices at artificial, non-competitive levels and to deprive the Nigam of the benefits of free and open competition;

(b) will reject a proposal for award if it determines that the Tenderer recommended for award has engaged in corrupt or fraudulent practices in competing for the contract in question.

(c) will declare a firm ineligible, either indefinitely or for a stated period of time, to be awarded a Nigam contract if it at any time determines that the firm has engaged in corrupt or fraudulent practices in competing for, or in executing, a Nigam contract.

30. Settlement of Disputes

a. Any dispute(s) or difference(s) arising out of or in connection with the Contract shall, to the extent possible, settled amicably between the parties.

b. If any dispute or difference of any kind whatsoever shall arise between the Owner and the Business Associate , arising out of the Contract for the performance of the Works whether during the progress for the Works or after its completion or whether before or after the termination, abandonment or breach of the Contract, it shall, in the first place, be referred to and settled by the empowered officer to be appointed by the Owner, who, within a period of thirty (30) days after being requested by either party to do so, shall give written notice of his decision to the Owner and the Business Associate .

c. Unless as hereinafter provided, such decision in respect of any matter so referred shall be final and binding upon the parties until the completion of the

DHBVN

Works and shall forthwith be given effect to by the Business Associate who shall proceed with the Works with all due diligence, whether he or the Owner required arbitration as hereinafter provided or not.

d. If after the Empowered Officer has given written notice of his decision to the parties, no claim to arbitration has been communicated to him by either party within thirty (30) days from the receipt of such notice, the said decision shall become final and binding on the parties.

e. In the event of the Empowered Officer failing to notify his decision as aforesaid within thirty (30) days after being requested aforesaid, or in the event of either the Owner or the Business Associate being dissatisfied with any such decision, or within thirty (30) days after the expiry of the first mentioned period of thirty (30) days, as the case may be either party may require that the matters in dispute be referred to arbitration as hereinafter provided.

31. Arbitration:

All matters, question, disputes, differences and/or claims arising out of and/ or concerning and/or in connection and/or in consequences or relating to this Contract whether or not obligations of either of both parties under this Contract be subsisting at the time of such dispute and whether or not this Contract has been terminated or purported to be terminated or completed, shall be referred to the Sole Arbitration of the MD, DHBVNL or an Officer appointed by the MD, DHBVNL as his nominee. The Award of the Arbitrator shall be final and binding on the parties to this Contract. Subject to aforementioned provisions, the provisions of Arbitration & Conciliation Act 1996 and the rules there under and statuary modifications thereof for the time being in force, shall be deemed to apply to the Arbitration proceedings under this Clause.

32. Jurisdiction of the Court

Hisar court in DHBVNL shall have exclusive jurisdiction to decide any dispute arising out of or in the contract.

N.B. The terms and conditions are being regulated by the “Procurement Manual of DHBVNL” and its amendments thereof. The terms and conditions provided in the tender documents are exhaustive in nature, however in case of any discrepancy, the regulations as provided in the Procurement Manual / its amendments thereof shall be followed. The bidders are expected to acquaint themselves with the regulations as provided in the Procurement Manual which is available on the web site www.dhbvn.org.in

SECTION -3 BID FORMS AND PROFORMA

DHBVNL

ANNEXURE– 1: COVERING LETTER

From:_____
_____

To
Chief Engineer/IT
DHBVNL, Hisar

Sub: Appointment of an Agency/ firm for Operation & Management of Single Window Call Center Services at Centralized Call Center and Bijli Suvidha Kendra (BSK) in DHBVNL

Sir,

1. We_____ (Name of organization) herewith enclose Technical & Financial proposal for selection of our organization as Bidder on lump sum basis for providing Single Window Centralized Customer Services to DHBVNL Customers by Operating & Maintaining a Customer Services Call Center (CSCC) in Haryana,

2. We are submitting our bid consisting of (With Indexing):

   a) Receipt of Online Payment for the prescribed amount of _____In favor of DHBVNL, Hisar is enclosed, as earnest money as desired. I fully understand that in the event of my/our tender being accepted this earnest money shall be retained by you till the submission of performance guarantee by me. I/we shall have no claim to the refund of the earnest money prescribed against this tender in the event of my/our non-compliance of the purchase Order provided such order is placed within the period of validity of my/our tender as Indicated in the below mentioned paragraph. I further understand that my earnest money will stand forfeited even if I withdraw my tender at any stage during the currency of the period of validity.

   b) My/our tender along with the terms and conditions with the relevant columns and annexure duly filled in under my/our attestation and with each page of the tender papers (including the enclosed terms and conditions signed by me/us, (in the capacity of sole owner/general or special attorney, in proof of which power of attorney is attached) is submitted for your favorable consideration.

   c) I/we have read the enclosed terms and conditions carefully and have signed the same in taken of their absolute and unqualified

acceptance. My/our tender constitutes a firm offer under the Indian Contract Act 1872 and is open to an acceptance in whole or in Parts. My/our offer, if accepted on the attached terms and conditions will constitute a legally binding contract and shall operate a contract as defined in the Indian Contract Act. 1872 and the Indian sale of goods Act. 1930.

d) Documentary proof in support of turnover shall be submitted by the Bidder in the form of Audited Annual Reports.

e) All the required Forms/Annexures/Documents/Affidavits/Undertakings as mentioned in the Bidding document.

f) The Bidder should agree to the entire scope of work and deliverables. No proposal for deviation / part scope of work/ condition will be considered.

g) Details of past experience are to be provided in Technical Bid as per format provided at Form-2. Documentary evidence (e.g. Copy of work Order/Letter of Award/LoI/Completion certificate/ Project Report /proof of payment/ any other relevant documents etc.) to be provided in support of past experience.

h) Adequacy of the proposed Methodology and work Plan in responding to the Scope of Work as per Form - 4.

3. _____[Name and contact information of one of the team members] shall be the Team Leader for the Assignment.

4. We declare that the quoted lump sum fee is firm and shall remain valid for the entire period of the consultancy Assignment. We further declare that the above quoted fee includes all taxes (excluding GST) payable by us under this contract.

5. We hereby confirm that if any Income Tax, Surcharge or any other Corporate Tax is attracted under the law, we agree to pay the same to the concerned authorities.

6. We declare that the services will be rendered strictly in accordance with the specifications. We confirm our acceptance/compliance to the `Deliverables`and `Terms of payment` clauses as stipulated in the bid documents. We confirm that Contract Performance Guarantee for ten (10%) of the

total consultancy fee in the form of bank guarantee shall be provided by us in case of placement of award.

7. We hereby declare that only the company, persons or firms interested in this proposal as principal or principals are named herein and that no other company, person or firm other than one mentioned herein have any interest in this proposal or in the contract to be entered into, if we are awarded this contract.

8. We declare that the services will be rendered strictly in accordance with the specifications, and we do not have any deviation to any of the terms and conditions of the bidding documents.

9. We confirm and certify that all the information / details provided in our bid are true and correct.

10. We give our unconditional acceptance to the Bid Documents issued by DHBVNL, as amended. We shall execute the Contract Agreement as per the provisions of the Bid Document.

11. Further, we confirm that we agree to and seek no deviations from the scope of work, time schedule, deliverables, payment terms and all other terms and conditions as contained in the Bid Document. The proposal is unconditional. The Bid will be valid 180 (One hundred Eighty days) from the opening of Financial Bids.

12. We also declare that by taking this Assignment we do not have any conflict of interest with any of our prior or current obligations to other organizations/clients and also do not have business or family relationship with members of DHBVN/ DHBVNs employees or persons positioned in or on the Board of DHBVNL by whatever process and if found incorrect, we may be debarred from any further engagements by DHBVNL forever.

13. We certify that all the information provided in our bid, including the information regarding the team members, is true. We understand that any willful misstatement in the bid may lead to disqualification or cancellation of award if made or termination of contract. We also understand that in such a case we may be debarred for future assignments with DHBVNL for a period of maximum three years from the date of such disqualification.

14. Further, we undertake that in the event of our appointment as Bidder, given the nature of the work being entrusted, the contents/ essence of any reference/ documents given would not be disclosed to any third person

without the express approval of DHBVNL, failing which the engagement of the organization would be terminated.

Signature of Authorized Person

Name:

Designation & Company seal

Date:

Place:

DHBVNL

ANNEXURE– 2: EXPERIENCE OF ORGANISATION

1. Brief Description of the Organization:

2. Outline of experience on assignments:

Sr. No.	Name of Client	Name of assignment with work order no. and date	Scope of work in brief/ type of Services Provided	No. of Agent's & Supervisor's Deployed	Work Order Value (In INR.)	Confirm attachment of PO/ WO	Date of Commencement	Date of Completion
1								
2								
3								

3. It is hereby certified that the above-mentioned details are true and correct.

4. It is hereby certified that our company has actually carried out and completed the above-mentioned work/as

Signature of Authorized Signatory

Full Name:

Date:

Note:

Experience of the Bidders would be evaluated on the following basis:

1. Please attach documentary proof for claimed experience; the proofs could be namely, Copy of work Order/ Letter of Award/ LoI/ Completion certificate/ Project Report /proof of payment/ any other relevant documents etc.
2. Please attach copy of documentary proof of satisfactory completion for assignments handled from their clients.

DHBVNL

ANNEXURE– 3: SCHEDULE OF PRICE BID

Sub: Appointment of an Agency/ firm for Operation & Management of Single Window Call Center Services at Centralized Call Center and Bijli Suvidha Kendra (BSK) in DHBVNL,

Price Bid Format is as under:

S No	Description	Ex-work price (in Rs.)	Applicable GST %	Total Price (In Rs.)
		A	B	C=A+B
1	All-inclusive Per Shift Per Seat per Month Price for first year			

Note:

1. The Assignment will be awarded to the technically qualified Bidder who has quoted the lowest lump sum price in Indian Rupees, without condition(s) or alternate price bid. All the operational and manpower cost including resource requirement as mentioned in the RfP, should be build up on Per Seat Price for each shift on monthly basis. Total Annual Contract Price would be the 'Monthly Price Quoted per Shift per Seat' multiply by 'total seats in each shift in each month in a Year'.
2. The price offer for the Assignment should be quoted on lump sum basis.
3. All prices quoted by the bidder shall be "FIRM" during the tenure of the Contract and shall not be subject to variation on any account, for all intents and purposes except GST or as per "Price Variation" clause. No escalation for any other reason whatsoever shall be allowed over and above the bid price. However, GST shall be paid over and above the bid price.
4. GST at source will be deducted by DHBVNL as per the applicable law and regulation and TDS certificate shall be issued to the Bidder by DHBVNL.

DHBVNL

ANNEXURE– 4: THE PROPOSED METHODOLOGY AND WORK PLAN

Bidder`s

Name &

Address

To
The Chief Engineer/IT,
Dakshin Haryana Bijli Vitran Nigam,
Vidhyut Sadan, Vidyut Nagar, Hisar.

Dear Sir,

We hereby enclose a brief write up on the proposed methodology to be adopted for running Customer Care Center Operations in prescribed timelines.
.

i) Approach Methodology and Work Plan in responding to scope of work and deliverables.

ii) Key Personnel and their Task Assignment for Completing the Assignment

Authorized Signatory:

Full Name:

Address:

(Seal)

DHBVNL

ANNEXURE– 5: PROFORMA FOR BANK GUARANTEE FOR CONTRACT PERFORMANCE

(TO BE STAMPED IN ACCORDANCE WITH STAMP ACT)
The non-judicial stamp paper should be in the name of issuing bank.

Ref ----------

Bank Guarantee No----------

Date.....

To,
Chief Engineer/IT,
Dakshin Haryana Bijli Vitran Nigam,
Vidhyut Sadan, Vidyut Nagar, Hisar.

Dear Sirs,
In consideration of Dakshin Haryana Bijli Vitran Nigam (hereinafter referred to as the 'Owner' which expression shall unless repugnant to the context or meaning thereof include its successors, administrators and assigns) having awarded to M/S …….. with its registered / Head office at ……(herein after referred to as the Contractor which expression shall unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns), a Contract by issue of Owner's Letter of Award No. ……..dated .....and the same having been unequivocally accepted by the Contractor, resulting in a Contact bearing No. ..... Dated ……. Valued at …….. For ……(Scope of Contract) and the Contractor having agreed to provide a Contract Performance Guarantee for the faithful performance of the entire Contract equivalent to …….(%)…….. (Percent) of the said value of the Contract to the Owner.
We …… (Name and Address of the Bank). Having its Head Office at ……(hereinafter referred to as the 'Bank' which expression shall, unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns) do hereby guarantee and undertake to pay the Owner, on demand any and alimonies payable by the Contractor to the extent of …….. as aforesaid at any time upto ..... (days /month / year) without any demur, reservation, contest recourse or protest and / or without any reference to the Contractor.

SFMS details for online BG Confirmation by DHBVNL:
Branch Name : State bank of India, SME, Hisar
IFSC Code: SBIN0004048

Any such demand made by the owner on the Bank shall be conclusive and binding notwithstanding any difference between the owner and the Contractor or any dispute pending before any Court, Tribunal, Arbitrator or any authority. The Bank undertakes not to revoke his guarantee during its currency without previous consent of the Owner and further agrees that the guarantee herein contained shall continue to be enforceable till the Owner discharges this guarantee.

The Owner shall have the fullest liberty without affecting in any way the liability of the Bank under this guarantee, from time to time to extend the time for performance of the contract by the Contractor. The Owner shall have the fullest liberty, without affecting this guarantee to postpone from time to time the exercise of any powers vested in them or any right which they might have against the Contractor, and to exercise the same at any time in any manner and either to enforce or to for bear to enforce any covenants, contained or implied, in the Contract between the Owner and the Contractor or any other course or remedy or security available to the owner. The Bank shall not be released or its obligations under these presents by any exercise by the Owner of its liberty without reference in the matters aforesaid or any of them or by reason of any other Act of omission or commission on the part of the Owner or any other indulgences shown by the Owner or by any other matter or thing whatsoever which under law would but for this provision have the effect of relieving the Bank.

The Bank also agrees that the Owner at its option shall be entitled to enforce this a guarantee against the Bank as a principle debtor, in the first instance without proceeding against the Contractor and notwithstanding any security or other guarantees the owner may have in relation to the Contractor's liabilities.

Notwithstanding anything contained herein above our liability under this guarantee is restricted to……. and it shall remain in force upto and including.....and shall be extended from time to time for such period as may be desired by M/S …… On whose behalf this guarantee has been given.

Dated this.....Day of.....20…. at .....

WITNESS

---	---
(Signature) (Signature)	
---	---
(Name)	(Name)
---	---
(Official Address)	(Designation with Bank Stamp)

DHBVN

Attorney as per Power

of Attorney No.....
Date .....

Note:

* This sum shall be 10% of finalized charges.
**The date will be three months after the end of 2 years as specified in the Contract.
The stamp papers of appropriate value shall be purchased in the name of issuing bank.

DHBVNL

ANNEXURE– 6: SPECIAL INSTRUCTIONS TO BIDDERS FOR E-TENDERING

These conditions will over-rule the conditions stated in the tender documents, wherever relevant and applicable.

1. Registration of bidders on e-Procurement Portal: -
All the bidders intending to participate in the tenders processed online are required to get registered on the centralized e - Procurement Portal i.e. http://etenders.hry.nic.in. The bidders are also required to have/obtain Class-II or III digital signature certificate from any Certifying Authority or Sub-certifying Authority authorized by the Controller of Certifying Authorities for submission and processing of the bids. Please visit the website for more details.

2. Download of Tender Documents:
The bidders can view and download the detailed N.I.T and the time schedule (Key Dates) for all the tenders floated through the single portal e-Procurement system on the Home Page at http://etenders.hry.nic.in.

3. Pre-requisites for online bidding:
In order to bid online on the portal http://etenders.hry.nic.in, the user machine must be updated with the latest Java. The link for downloading latest java applet and "DC setup" Utility is available on the Home page under the tab 'Download' of the e-tendering Portal.

4. Key Dates:
The bidders are strictly advised to follow date and time as indicated in the online Notice Inviting Tenders (NIT). The date and time shall be binding on all bidders. All online activities are time tracked and the system enforces time locks that ensure that no activity or transaction can take place outside the start and end dates and the time of the stage as defined in the online Notice Inviting Tenders (NIT).

5. Bid Preparation (Technical & Financial) , Payment of Tender Document Fee, EMD fees and Submission of Bid Seal (Hash) of online Bids:
The Following are to be made by the bidder through NIC portal: -

a) Tender document fee of Rs_____ with GST through Debit Cards & Internet Banking Accounts.

b) Earnest Money Deposit (EMD) **Rs.** _____shall be submitted through online payment mode via through Debit Cards & Internet Banking Accounts and through RTGS / NEFT.

c) E-service fees **Rs.** _____with GST shall be submitted through online payment mode via through Debit Cards & Internet Banking Accounts.

5.2 The bidders shall upload their technical offer containing documents, qualifying criteria, technical specification, schedule of deliveries, validity and all other terms and conditions except the rates (price bid). The bidder ensure that uploaded documents must be properly numbered and indexed.

The bidders shall quote the prices in price bid format in a specified template.

5.3 Submission of bids will be preceded by submission of the digitally signed & sealed bid (Hash) as stated in the time schedule (Key Dates) of the Tender.
NOTE: -

1. If bidder fails to complete the Online Bid Preparation & Submission stage by the stipulated date and time, his/her bid will be not be considered.

2. Bidders participating in online tenders shall check the validity of his/her Digital Signature Certificate before participating in the online Tenders at the portal http://etenders.hry.nic.in.

3. For help manual please refer to the 'Home Page' of the e-Procurement website at http://etenders.hry.nic.in, and click on the available link 'System Requirement" to download the file. Help manual is available on 'Home Page' of the

http://etenders.hry.nic.in.

For queries on Tenders Haryana Portal, kindly contact: -

Note- Bidders are requested to kindly mention the URL of the Portal and Tender Id in the subject while emailing any issue along with the Contact details. For any issues/ clarifications relating to the tender(s) published kindly contact the respective Tender Inviting Authority.

Tel:	0120-4200462, 0120-4001002
Mobile:	8826246593
E-Mail:	support-eproc[at]nic[dot]in
	For any technical related queries please call at 24 x 7 Help Desk Number
	0120-4001 002
	0120-4200 462
	0120-4001 005
	0120-6277 787
	International Bidders are requested to prefix 91 as country code
	Email Support
	A) For any Issues or Clarifications relating to the published tenders,
	bidders are requested to contact the respective Tender Inviting Authority
	Technical - support-eproc(at)nic(dot)in

DHBVNL

ANNEXURE– 7: PROFORMA OF 'AGREEMENT'

(To be executed on non-judicial Stamp Paper)

THIS AGREEMENT is made on this _____ day of _____, _____, between Chief Engineer/IT of Dakshin Haryana Bijli Vitran Nigam Limited, DHBVN, Hisar(hereinafter called "the Purchaser") which expression shall unless repugnant to the context thereof include his successors, heirs, assigns, of the one part, and_____of_____(hereinafter called "the Agency/ Services Provider") which expression shall unless repugnant to the context thereof include his successors, heirs, assigns, of the other part.

WHEREAS the Purchaser had invited bids for certain Goods and Related Services, viz _____against tender enquiry no. No. TER _____ dated _____. AND WHEREAS various applications were received pursuant to the said bid AND WHEREAS the Purchaser has accepted a Bid by the Agency/ Services Provider for the supply of those Goods and Related Services in the sum of _____ (hereinafter "the Contract Price") And in pursuance of having accepted the said bid the parties have agreed to enter into this agreement.

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. In this Agreement words and expressions shall have the same meanings as are respectively assigned to them in the Contract referred to.

2. The following documents (collectively referred to as "Contract Documents") shall be deemed to form and be read and construed as part of this Agreement, viz.:

i. The Detailed award of contract.

ii. The Service level agreement.

iii. Request for Proposal

iv. Corrigendum, clarifications and responses to queries issued by DHBVN.

v. Instructions to Bidders

vi. The Special Conditions of Contract.

vii. The General Conditions of Contract.

viii. Addendum, Corrigendum and Amendments by DHBVN during contract period

ix. The Technical Specifications

x. The Purchaser's Notification to the Agency/ Services Provider for Award of Contract.

xi. Vendor's response (proposal) to the RFP, including the Bid Submission Sheet and the Price Schedules submitted by the Agency/ Services Provider.

xii. Acceptance of purchaser's notification

Xiii. Communications between DHBVN and _____(hereinafter called "the Agency/ Services Provider") In the event of any discrepancy or inconsistency within the Contract documents, then the documents shall prevail in the order listed above. 3. In consideration of the payments to be made by the Purchaser to the Agency/ Services Provider as indicated in this Agreement, the Agency/ Services Provider hereby covenants with the Purchaser to provide the Goods and Related Services and to remedy the defects therein and bring them in conformity in all respects with the provisions of the Contract.

4. The Purchaser hereby covenants to pay the Agency/ Services Provider in consideration of the provision of the Goods and Related Services and the remedying of defects therein, the

Contract Price or such other sum as may become payable under the provisions of the Contract at the times and in the manner prescribed by the Contract.

IN WITNESS whereof the parties hereto have caused this Agreement to be executed in accordance with the laws of _____ on the day, month and year indicated above. Signed by _____ (Authorized DHBVN official) Signed by _____(for the Agency/ Services Provider)

Witness-1

Witness-2

DHBVNL

ANNEXURE– 8: No Ownership Change Certificate

(Performa for No ownership changes Certificate on NJSP duly attested by

Notary) Ref: _____ Dated: _____

To
Chief Engineer/IT, DHBVNL, Vidyut Nagar, Vidyut

Sadan, Hisar. Dear Sir,

1. I*/We* have read and examined the complete documents of Bid No. _____related to _____(full scope of work) on turnkey basis.

2. I*/We* hereby submit that our firm M/s _____ (with complete address) would not initiate any Ownership change during the period from the time of Bid submission to the two (2) years after the commercial operation, defined as successful completion of Supply of material, erection, testing and commissioning of _____ i.e., the turnkey works as mentioned in the scope of work of Bid No. _____and acceptance of the same by the Employer, However, in case, the firm is anticipating any such ownership change/ Takeover at any stage of the entire bid process and during the execution of Contract we would seek prior approval from the Nigam well in time. It shall be the sole discretion of the Nigam to grant permission for such change in ownership/takeover and if allowed by the Nigam for ownership change, the new company shall own all responsibilities and liabilities under the contract and the old firm should not be blacklisted by any State/ Central government or any of its agencies.

3. I*/We* hereby submit that any wrong declaration/ violation if detected/ found at any point of time shall be the sole responsibility of our firm M/s _____ (with complete address) its Owners / Inheritors / Successors / Managing Director / President etc. and shall be liable for any penalty / our blacklisting / debarring for three years or any other punishment as decided by the Nigam.

I/We also agree to abide by and fulfill all the terms, conditions & provisions of the above-mentioned Bid documents.

Signature along with Seal of Company _____ (Duly authorized to sign the application on behalf of the firm)
Name: _____
Designation: _____
Name of Company: _____(In Block Letters)

WITNESS
Signature:
Date & Postal Address:
Date: Name & Address:
Telegraphic address: Telephone No.:

DHBVNL

ANNEXURE– 9: AFFIDAVIT For Non-Blacklisting

(On NJSP of appropriate value)

I, …… S/o Sh. ……Proprietor/Partner/Director of M/s ……. with Headquarter at ……. being their authorized signatory, do hereby solemnly affirm and declare that: -

1. M/s ……, is not blacklisted by any State/Central Govt. OR any of its agencies OR any Power Utility (GENCO / TRANSCO / DISCOM) owned by Govt./ Private sector in India.
2. None of the Promoter/ Partner/ Director and their family members of aforementioned firm is the promoter / partner / director of any blacklisted firm(s) in India.
3. None of the Promoter/Partner/Director and their family members of aforementioned firm has been disqualified/ debarred by any State/Central Government or any of its agencies / Regulatory authority to become the promoter / partner / director of any company / firm in India.

I understand that if, upon acceptance of our offer dated …… against DHBVNL tender enquiry ……, the same is liable to be cancelled if this declaration is found wrong at any subsequent time and further, I understand to compensate the DHBVNL, for the consequences arising out of wrong declaration.

……..
S/o Sh. ……
Authorized Signatory
of M/s ……
…….

DHBVNL

ANNEXURE– 10: Turnover Details

(To be submitted by the bidder along with his Bid)

Ref: _____Dated __

To

Chief Engineer/IT
DHBVNL, Hisar

Dear Sirs,

This is with reference to qualifying requirement as per eligibility certeria. The necessary detail's regarding having necessary qualification is given as under

Sr. No.	Financial Year	Annual Turnover [Rs Crores]
1		
2		
3		

The copies of Audit Financial Statements and Audited statement of Turnover isattached.
Note: Furnishing of certificate of a registered chartered Account certifying fulfilment of specified qualification requirements is essential.

(Signature).....
Date:
Place: (Name).....
(Designation).....
(Common Seal) .....

DHBVNL

ANNEXURE– 11: Affidavit for Undertaking of Mandatory Compliances

(On NJSP of appropriate value)

I, …… S/o Sh. ……Proprietor/Partner/Director of M/s ……. with Headquarter at ……. being their authorized signatory, do hereby solemnly affirm and declare that: -

1. We shall ensure mandatory compliance of all statutory liabilities and other terms and condition as specified in the RFP document including corrigenda issued by DHBVNL against the RFP No ……...
2. We have submitted our proposal strictly as per terms and formats of the RFP, without any deviations, conditions and without mentioning any assumptions or notes in the said proposal.

I understand that if, upon acceptance of our offer dated ……. against DHBVNL RFP No ……., the same is liable to be cancelled if this declaration is found wrong at any subsequent time and further, I understand to compensate the DHBVNL, for the consequences arising out of wrong declaration.

……..

S/o Sh. ……

Authorized Signatory

of M/s ……

…….….

DHBVNL

ANNEXURE– 12: No Litigation Certificate

(On NJSP of appropriate value)

I, …… S/o Sh. ……Proprietor/Partner/Director of M/s …….. with Headquarter at ……. being their authorized signatory, do hereby solemnly affirm and declare that the details of the litigations and disputes (currently or during last three years) against us, are as under:
<insert the details of litigation & disputes along with the disputed amount>

I understand that if, upon acceptance of our offer dated ……. against DHBVNL tender enquiry ……, the same is liable to be cancelled if this declaration is found wrong at any subsequent time and further, I understand to compensate the DHBVNL, for the consequences arising out of wrong declaration.

……..
S/o Sh. ……
Authorized Signatory
of M/s ……
……..

DHBVNL

ANNEXURE– 13: Minimum Technical Specification for Workstations

Description	Minimum Specification
Processor	Intel Core i5 or equivalent (12th generation or Higher)
RAM	8 GB
Hard disk	256 GB SSD + 1 TB SATA HDD
Video Graphics	Integrated Graphics
Display	19.5”
Operating System	Preloaded Windows 11 Professional (64 bits)
Keyboard	Standard USB OEM make
Mouse	Optical/Laser USB OEM make
Miscellaneous	All the standard ports i.e. USB, HDMI, microphone and other standard ports.

DHBVNL

ANNEXURE– 14: Features/ Functionalities for Dialer/ EPAX System

Automatic Call Distribution:

- ANI- Automatic number identification
- DNIS- Dialed number identification sequence-based routing,
- User specific welcome greeting message
- Hold-on Music (as per DHBVNL's requirement),
- Extension Dialling and Call patching
- Office hours configuration
- Call Routing and ability to support call overflow rerouting
- Wait time notification
- Facility to caller of opting out to automated information (i.e. IVR) or register call back request
- Priority Queue facility and queue status indicator
- Rule based call distribution and routing on various configurable factors like longest idle time, skill set, time of day, priority, etc.
- Inbound and outbound call routing
- Realtime Monitoring through MIS Reports
- System must offer the caller the option to fall back to IVR before abandoning the call.
- Configuration of rules in case of Overflow Destinations
- Facility of accepting SIP/PRI connection with provision for addition of more nodes as and when required for expansion.
- ACD should have facility to integrate with Utility's IT system and provide facility to call a number by clicking a button or link.

Inbound & Outbound Call Facility

- Facility to attend inbound & make outbound calls via softphones
- Calls will be distributed to all the available executives uniformly. Call may be distributed in various ways like priority-based routing, executive Idleness based routing, skillset based routing or executive based routing.
- System should be able to connect to multiple locations and distribute calls if required in future.
- During the inbound call, the call received should be assigned automatically to the available Agent. If all the lines are engaged, an automated IVR message to be played.
- Sticky agents features for enhanced consumer experience
- Number masking for consumer privacy
- Visual Indication about the type of incoming/auto dailer call to the agent dashboard
- Hold, Transfer & Conference Feature for at least 4 parties.
- Facility to update codes to identify events (static disturbance, noisy or any other audio issues) that occurred during a call and to enter wrap up codes before becoming available for another call
- The Outbound call (OBC) facility is required for calling the Complainant for checking the status of registered complaint, obtaining feedback on the services offered and also for calling the concerned Officials to inform the pendency of complaints/activities to be attended/ addressed by them.

- The Solution should facilitate to click to call feature **duly masking** the number to make outbound calls directly from the application. In case, any Higher Authorities wishes to use the OBC, the application/solution should facilitate the same being wherever required.
- Unique Call Identification Tag - A unique tag must be associated with each call when it originates and remain with the call throughout a multi-site network to facilitate cradle to grave call tracking
- Outbound calling solution which shall facilitate auto dailer, predictive dailing, preview dailing, outbound IVR, etc.
- Provision to generate automated outbound campaigns with Text to Speech Conversion functionality for various Outbound campaign eg: payment reminders etc
- Should be capable of maintenance of complete call logs of all calls received in Helpline for at least 1 year.

Multi level IVR & Auto Attendant :

- Request and collect information, such as a consumer no, and then route the call based upon that information
- Retrieve the data in real time from the database residing at Utility's IT System.
- Answers questions such as electricity payment dues, bill payment status completion, outage related, Complaint status etc. as per Utility requirement.
- IVR should be able to configure rule based workflows and integrate with Utility's IT systems. For example:

  Self registration of complaint: Based on consumer registered number IVRS should be able to retrieve information from Utility's IT system and register complaint.

  IVR should be able to integrate with Utility's IT system and forward all abandoned and missed calls in real time basis.
- Rule based routing e.g. IVR can automatically play payment balance, pending complaint, etc.
- The system must provide customers in queue with a variety of announcements including call waiting notification.
- The system must be able to force customers to listen to an entire announcement before being connected to an AGENT. Alternatively, the system must be able to immediately connect a call to the AGENT if an AGENT becomes available before an announcement is completed. The supervisor must have the capability to control which method is being used.
- Multichannel Integration i.e. SMS, email, WhatsApp, Voice Message, chatbots, social media, etc.
- Personalized greeting and announcements based on the DHBVNL's requirement
- Customizable Music/announcements for on hold calls
- Call back service registration: IVR shall enable facility for consumer to register for call back. All such cases should also be forwarded to Utility's IT system in real time.
- IVRS system should be designed for bilingual support.
- Based on the inputs as part of the IVRS interface, calls are grouped and routed using ACD. When any agent receives the calls, existing customer related data would be available on the computer screen. This will make use of the inputs taken as part of IVRS system.
- Reporting and Analytics Tool for IVR optimization

Computer Telephone Integration (CTI)

- Calling Line Information Display (Caller's Number, Number Called, IVR Options)
- Screen pop-ups on the agent's screen based on CLI (Caller Line Identity), ANI (Automatic number identification) and DNIS (Dialled number identification sequence)
- On Screen Dialling (Fast dial, preview, and predictive dial)
- On Screen Phone Control (Ringing, Answer, Hang-up, Hold, Conference etc.) support relevant
- The CTI shall be suitably integrated with Utility's IT System for passing all the information from the PBX and IVR, such as the caller identification, dialled number information, Language option service opted by the caller etc., to the agent's screens.
- Facilitate desired action / agent for an incoming call like login, logout, away, pick-up, hold, hang-up, conference, and transfer to another agent along with the screen (voice and data).
- Screen pop-ups may be multi-coloured. Queries or call priorities should be recognizable by the color of the pop-up.
- On transferring the call to another agent the screen too should be transferred to that Agent's screen. Call events should be handled from the system such as hold, retrieve hold, conference, transfer etc.
- Entire login, logout, away, total call handled, data of the agent should be captured and produced as reports.

Cloud Voice Logger & Storage:

- There should be provision of Pre-integrated Active Voice Logging, 100% Blind Recording, Multi-format Voice Recording, Automatic Compression and Archiving for all the incoming & outbound calls.
- The solution should support Automatic Call Tagging with metadata, such as Agent id, calling number, call duration, date and time, caller information, etc as per DHBVNL's requirement. This metadata shall facilitate with quick & easy search and retrieval of Voice files according to the calls made.
- Access control features to ensure that only authorized individuals can access and listen to recorded conversations.
- Playback Interface for listening to recorded calls with features to annotate, analyze, and evaluate the recorded conversations for quality assurance or training purpose.
- System should be able to provide API for integration with Utility's IT system to view, retrieve and playback all calls.
- Facility to annotate, analyze, and evaluate the recorded conversations for quality assurance or training purposes.
- Integration with various IT applications to enhance the context of recorded interactions

Supervisor Application for Agent Monitoring

- Facility of Supervision architecture on Telephony/Dialer System.
- Facility to answer the agent's requests for supervisor assistance which shall be provided on the supervisor's dashboard with special audible and visual notification; so that the supervisor may readily identify that an agent requires support. The dashboard/display must provide identification of the calling AGENT to the supervisor without referring to the supervisor terminal
- Supervisors must have the capability to receive ACD calls during busy periods

- Supervisors must be able to logout agents from their own "soft phone" or supervisor terminal without having to go to the agent's desk.
- Facility of Barging, Listening, whispering, and monitoring of the calls on real time basis
- Both silent monitoring and tone indication to the agent during monitoring must be available
- Must be provided with facility to add or remove AGENT skills.
- The supervisor must be able to see at a minimum (in plain language and color graphical formats) information including but not limited to each of the following items:
- Active AGENTs and the current individual AGENT status (whether on an active ACD call, in after-call work, waiting for an ACD call, or in an inactive or idle state).
- Number of AGENTs currently in various work states such as available, on ACD calls, in unavailable modes.
- Drill down capability to see individual performance data for a given AGENT.
- Current queue status including calls waiting, oldest call waiting, number of calls handled, number of calls abandoned,etc
- Closely monitor the performance of various agent teams by tracking special KPIs, such as average call duration, maximum waiting time, and longest call.
- Display of how AGENT time is spent based upon assigned reason codes for unavailable non call associated work modes. For example: how much time AGENTs spent on breaks, in group meetings, training, etc. At least nine different reason codes are required for reporting time spent unavailable. These must be reported individually on each individual AGENT report.
- a call handling time profile which displays the number of calls answered and abandoned according to increasing service intervals. For example, how many calls were answered and abandoned from 0-5 seconds,5-30 seconds, 30-60 seconds, 60-90 seconds, etc.
- the number of times during the current interval that a AGENT reported a call event. This will assist Utility in keeping count of specific customer requests or types of calls. At least nine different call events must be tracked.
- It should also have the online monitoring display of the ACD queue

Reporting Dashboard

- Should have the provision of Generation of business-oriented comprehensive reports at Agent, Campaign, System and Resource levels, Real-time and Historical Data Analysis and Automatic Maintenance and Backup Management.
- It is desirable that MIS Report data be exported in various formats excel, csv, etc or directly to other applications.
- The system must support "cradle to grave" reporting which would reveal exactly what happened to a caller from the time they entered the system until the time they hung up, and everything in between
- Historical reports must be available for CSRs, split/skills, trunk groups, and applications in interval, daily, weekly, and monthly formats.
- The reports should facilitate in data-driven decisions with KPIs to measure productivity, detect any gaps in the customer interactions, and improve efficiency.
- System should be able to provide Logs, Agent performance reports and other details via API to Utility’s IT system

ANNEXURE– 15: Roles and Responsibilities

Role and responsibility of Quality Auditors:

1. Call Monitoring & Compliance Check: Regularly listen to and review recorded calls or live interactions between agents and customers to assess adherence to company standards and procedures.
2. Audits of calls and replies posted through Email/Facebook/Twitter (5% upto maximum 10,000 numbers in a month) as per the checklist given by DHBVNL
3. Performance Evaluation: Evaluate agent performance based on criteria such as communication skills, adherence to scripts, problem-solving abilities, and overall professionalism.
4. Constructive Feedback: Provide actionable feedback to agents based on their performance evaluations to help them improve their skills and customer service.
5. Training Needs Identification: Identify areas where agents may need additional training or support and recommend appropriate training programs or sessions.
6. Customer Feedback Analysis: Analyze customer feedback and complaints to understand service gaps and areas for improvement.Work on strategies to enhance the overall customer experience and ensure a consistent quality of service.
7. Reporting and Recommendations: Offer insights, identify issues (recurring problems or inefficiencies in call handling, etc) and recommendations to management for enhancing processes, improving agent performance, and boosting customer satisfaction.

Role and Responsibility of Team Leader:

1. Supervision: Oversee the performance of call center agents within their team. Provide guidance, support, and mentorship.
2. Scheduling: Manage agents' schedules, including shift patterns, time-off requests, and ensuring coverage during peak periods.
3. Performance Monitoring: Monitor individual and team performance metrics.
4. Feedback: Provide regular performance feedback to agents, both positive and constructive, to help them improve.
5. Training: Conduct initial training for new hires and ongoing development sessions for current team members.
6. Skill Enhancement: Identify training needs and arrange for additional coaching or mentoring as required.
7. Compliance Monitoring: Ensure agents adhere to company policies, procedures, and quality standards during their interactions with customers.
8. Call Reviews: Participate in call monitoring and evaluation to maintain high service quality.
9. Issue Resolution: Handle escalated customer issues that agents cannot resolve and ensure prompt and effective solutions.
10. Team Motivation and Morale:Encourage and motivate the team, fostering a positive and productive work environment.
11. Performance Reports: Prepare and present reports on team performance, trends, and areas for improvement to upper management.
12. Process Improvement: Analyze performance data to identify and address areas for improvement within the team.Develop and implement strategies to enhance efficiency and service quality.

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Roles and Responsibilities of a Shift In-Charge

1. Shift Management: Manage all aspects of the call center during their shift, including shift changes, manage breaks, and ensure adequate coverage throughout the shift.
2. Real-time Supervision: Monitor call volume, agent performance, and adherence to processes in real time during the shift.
3. Issue Resolution: Address immediate performance issues or operational challenges as they arise.
4. Support and Assistance: Provide on-the-spot support to agents/team leaders for resolving complex queries or technical issues.

5. Escalations: Handle escalated customer complaints or issues that arise during the shift.
6. Reporting: Prepare end-of-shift reports on performance metrics, issues encountered, and any incidents or irregularities.
7. Shift Briefings: Conduct briefings at the beginning and end of the shift to communicate goals, updates, and any important information.
8. Coordination: Coordinate with other shift in-charges and team leaders to ensure a seamless transition between shifts.
9. Resource Management: Manage resources effectively to handle call volume and maintain service quality.
10. Feedback Collection: Gather feedback from agents about the shift and provide insights for improvement.

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